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DIGITAL CEASEFIRE & DE-ESCALATION HANDBOOK

A Practical Framework for Negotiating Agreements to Constrain Digital Operations, Protect Civilians, and Advance Peace

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A Practical Framework for Negotiating Agreements to Constrain Digital Operations, Protect Civilians, and Advance Peace

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HUMAN RIGHTS CENTER

The Human Rights Center pursues justice through science, technology, and law. Based at the world's top public university, we investigate human rights violations and international crimes; set standards for practitioners; and train the next generation of human rights defenders.

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Note to Users

THE DIGITAL CEASEFIRE & DE-ESCALATION HANDBOOK provides a framework and language that Parties and mediators can use to negotiate and mediate Digital Operations in Armed Conflicts, Grey Zone Activities, and Internal Disturbances. All words that are capitalized in this Note to Users and in the Handbook are defined in the Definitions section of the Handbook.

The Handbook was drafted to reflect the increasing use of Digital technologies and capabilities by parties, ensuring that any Agreement binding Parties to cease or de-escalate prohibited acts, whether Digital or otherwise, can include language to address this reality.

The structure of this Handbook is modeled after and adapted from ceasefire Agreements, including provisions in sections titled Preamble; Entry into force; Prohibited Digital Operations; Third Parties; Constructive Digital Operations; Digital Monitoring Commission; Dissemination and Promotion of the Agreement; External Support; Definitions; and Signatories. Although ceasefire Agreements usually extend beyond International Law obligations, parties often acknowledge their legal responsibilities, so an Annex for Commitments to International Law is included, from which parties can draw language depending upon whether they are negotiating in the context of an Armed Conflict, Grey Zone Activities, or Internal Disturbances.

The provisions in this Handbook are a menu of options, not a comprehensive model to be adopted in full. Parties may select, adapt, combine, or omit provisions according to the context, objectives, and scope of the situation. As outlined below, Agreements may take various forms: provisions may be incorporated into an Agreement that addresses the kinetic elements of a conflict, annexed to such an Agreement, or stand alone.

Prohibited Digital Operations

The Handbook uses the term Prohibited Digital Operations to refer to Digital Operations that the Parties agree to De-escalate or cease undertaking. The term is therefore defined by the commitments the Parties choose to include in their Agreement and may encompass Digital Operations in the context of an Armed Conflict, Grey Zone Activities, or Internal Disturbances.

Importantly, describing an operation as "prohibited" under the Agreement does not imply that such operations are necessarily unlawful under International Law; rather, it reflects the specific restraints the Parties have agreed to observe. This may include Agreement to cease otherwise lawful Digital Operations as a measure of restraint, De-escalation, or confidence-building.

If Parties are unable to agree to prohibit Digital Operations, they view cessation as infeasible or undesirable, or they wish to actively limit but not comprehensively cease certain activities, they can instead agree to de-escalate Digital Operations. In that case, Parties could instead use the term "De-escalated Digital Operations" and language such as "reduce" or "mitigate" or "de-escalate" instead of "cease" or "stop" or "prohibit." Parties could then set a numerical or percentage threshold for De-escalation or set a frequency-based, severity-based, or impact-based threshold. This Handbook is structured around Prohibited Digital Operations, but each provision in this Handbook can be adapted to instead focus on De-escalated Digital Operations.

Categories of Prohibited Digital Operations

This Handbook divides Prohibited Digital Operations into three categories as set out in Section 3:

1. **Internet Interference**, which the Parties may agree include Internet Shutdowns, Internet Infrastructure Attacks, Electronic Jamming, Third Party Internet Interference, and Humanitarian and Emergency Connectivity Disruptions;
2. **Information Threats**, which the Parties may agree include Misinformation and Disinformation, Manipulated Media, Inauthentic Behavior, Doxxing, Online Incitement to Violence, Hate Speech, Online Recruitment, Malicious Online Advertisements, Interference with Humanitarian Information and Data, Harassment of Journalists and Media, and Intimidating Diaspora;
3. **Cyber Attacks**, which the Parties may agree include Surveillance and Spyware, Hacking, Malware, Distributed Denial of Service Attacks, Phishing, Critical Infrastructure Attacks, and Weaponization of Digital Infrastructure and Systems.

As is typical of ceasefire Agreements, the Parties may agree to cease Prohibited Digital Operations against Military Objectives as well as Civilian Objects and Dual-Use Objects, even if not prohibited by International Law.

In addition to the categories of Prohibited Digital Operations, Section 5.0 provides an opportunity for the Parties to establish and agree upon a set of permissible or constructive commitments relating to connectivity, cyber defense, information dissemination, and other human rights and humanitarian protections.

Application of the Handbook to Armed Conflict, Grey Zone Activities, and Internal Disturbances

In the context of an Armed Conflict, this Handbook contains model language that may be incorporated into a ceasefire Agreement, appended as an annex to a broader ceasefire Agreement, or used to negotiate a standalone Digital ceasefire Agreement. Handbook provisions may also be adapted for use in comprehensive peace Agreements or other Agreements negotiated during the conduct of hostilities or as part of a broader peace process.

In situations of Grey Zone Activities or Internal Disturbances, where there is no Armed Conflict present, Parties may similarly wish to restrain, reduce, or cease specified Digital Operations. However, while Digital Operations may be ceased in Armed Conflicts, Grey Zone Activities, and Internal Disturbances, a Ceasefire presupposes the existence of an Armed Conflict.

In the absence of Armed Conflict, Handbook provisions may instead be incorporated into other forms of Agreement, such as political Agreements, codes of conduct, or adopted as Confidence Building Measures (CBMs) aimed at cessation or De-escalation. They may also be drafted as memoranda of understanding, framework Agreements, or other shorter instruments focused on broad principles. This Handbook also includes provisions relevant to contexts which remain below the threshold of Armed Conflict. In such instances other forms of language will generally be more appropriate than ceasefire terminology.

Digital De-escalation or cessation may occur in Armed Conflict, Grey Zone Activities, and Internal Disturbances, and may involve a reduction in the intensity, frequency, scope, or end to Digital Operations.

Practical Challenges to Negotiating and Monitoring Digital Operations

Negotiating Digital Operations presents practical and technical challenges, which may affect how Parties agree to and implement certain provisions in this Handbook. Drafting requires careful consideration of what is to be prohibited and tracked and how such monitoring mechanisms can be designed to ensure specific prohibitions together with effective monitoring (see Section 6 for monitoring commission guidance).

Parties may, for instance, be reluctant to accept extensive restrictions on their Digital capabilities, submit to external monitoring, or reveal their capabilities for safety and security reasons. This may result in an Agreement that does not address some of the Digital Operations causing the greatest harm.

Attribution presents a further challenge: purported breaches, particularly Cyber Attacks and Information Threats, may not be attributable to a Party with complete certainty, including where Proxy Actors are involved. This Handbook addresses these challenges by enabling Parties to negotiate the degree of certainty required or designate that responsibility to a Digital Monitoring Commission and providing alternative approaches where attribution is not possible.

Digital technologies and capabilities will continue to evolve. Parties should therefore consider drafting the Agreement with sufficient flexibility to encompass evolving contexts as well as new and emerging technologies and forms of Digital Operations that produce effects comparable to those addressed by its provisions, even where they are not expressly identified.

Cessation or De-escalation?

The complete cessation of Prohibited Digital Operations may not always be immediately achievable or verifiable. Unlike some kinetic activities, Digital Operations may continue through anonymous or unattributed actors, Third Parties, or activity beyond the direct control of the Parties. Parties should therefore consider defining what meaningful restraint and De-escalation would look like given the range of actors in the particular context.

Provisions can be tailored accordingly. If the goal is cessation, Parties may identify the specific sources or types of Prohibited Digital Operations to be addressed. They may also focus on new or context-specific actions, allowing commitments to evolve in response to new Prohibited Digital Operations identified by the Monitoring Commission. The Parties may decide to focus their negotiations on reducing or ceasing Digital Operations which produce the most harm, whether kinetic or otherwise, to civilians, vulnerable communities, public infrastructure and data, or the military.

These approaches can provide practical indicators of progress while preserving the ultimate goal of ending Prohibited Digital Operations. Parties may establish appropriate benchmarks, reporting periods, and methods of verification in the Agreement.

Standards of Restraint

The provisions in this Handbook often provide a high standard of restraint. Where Parties may be unwilling or unable to agree to a maximalist prohibition, they may wish to adopt narrower commitments aimed at reducing or De-escalating particular Digital Operations. For instance, Parties may agree to prohibit a certain scale of breaches rather than one-off breaches; to assess and report on the harmful effects of breaches rather than only the number and type of breaches; and to Digitally track and self-report their own breaches for public awareness.

Specificity to Context

Provisions in this Handbook are designed to be adaptable to any Armed Conflict, Grey Zone Activity, and Internal Disturbance. Parties should consider drafting more targeted provisions by identifying specific forms of conduct, content, or narratives relevant to their context, and providing additional parameters, such as time, place, or actors, to more clearly define the Parties' commitments. Parties may find certain provisions appropriate to end active fighting, while more may be longer term, normative items that are appropriate for a future Agreement.

Information and Communication Technology (ICT) Companies

Because Information and Communication Technology (ICT) Companies' products and services may be used to facilitate or otherwise contribute to Cyber Attacks, Internet Interference, and Information Threats, ICT Companies often play a significant role in the

Digital dimensions of Armed Conflicts, Grey Zone Activities, and Internal Disturbances without being formal Parties to the Agreement. While ICT Companies are often important stakeholders in efforts to reduce harm, establishing shared responsibilities and securing meaningful cooperation can be complex given their diverse mandates, business models, and regulatory obligations.

Some experts believe that in exceptional circumstances, an ICT Company may become a Party to an Armed Conflict, depending on its conduct and the applicable legal thresholds. Where an ICT Company is state-owned, Prohibited Digital Operations committed under the direction or control of that Party may be attributable to that Party, and therefore any such acts attributed to State-owned, State-controlled, or otherwise authorized ICT Companies breach Parties' commitments under the Agreement.

This Handbook provides provisions that allow ICT Companies to commit to ending the use of their products and services in the commission of Prohibited Digital Operations; to contribute their services to monitoring the Agreement; and to be signatories to the Agreement.

ICT Companies can also adopt separate commitments or codes of conduct, or serve as implementation partners. Such commitments may be voluntary or legally binding, depending on the nature of the instrument. The Agreement should clearly identify the nature of these commitments and, where appropriate, the specific ICT Companies to which they apply.

Emerging Technologies

This is a forward-looking Handbook that is designed to provide Parties with language that can be included for current technologies, but the purpose of the Agreement is a cessation or De-escalation of the effects and consequences of Prohibited and De-escalated Digital Operations, regardless of the specific technology or system used. Accordingly, Parties may wish for the Agreement to apply, where relevant, to new and emerging technologies and forms of Digital Operations that produce effects comparable to those addressed by its provisions, even where such technologies or operations are not expressly identified or enumerated in the Agreement. In which case, Parties should include language to that effect.

The Handbook does not include a separate Prohibited Digital Operation focused on Artificial Intelligence (AI), recognizing that AI is regularly used in connection with Internet Interference, Information Threats, Cyber Attacks, and other Digital Operations addressed throughout the Handbook. As the use and capabilities of AI continue to grow, the Handbook treats AI as a cross-cutting technology rather than a distinct category of Prohibited Digital Operations.

International Law

Because ceasefire Agreements often reference and reaffirm the Parties' obligations under International Law, the Handbook includes an Annex on Commitments to International Law in section 11. Its provisions may be incorporated into the Preamble, included throughout the Agreement, or retained as an Annex as set out here.

While the Handbook provisions draw upon existing International Law obligations, they also extend beyond it. Some provisions reflect legal obligations for the Parties (with the applicable legal basis set out in the footnotes), whereas others provide model commitments that Parties may voluntarily agree to adopt as part of a ceasefire or De-escalation Agreement, including commitments to refrain from conduct that would otherwise be lawful. Other provisions may contribute to the development of emerging norms or the progressive development of International Law.

The inclusion of a provision in the Handbook should not, by itself, be understood as indicating that the conduct it addresses is required or prohibited under existing International Law. At the same time, users should note that Parties remain subject to applicable International Law regardless of whether they sign an Agreement and the Parties cannot use the Agreement to contract out of their legal duties and obligations.

In situations of Armed Conflict, International Humanitarian Law (IHL) provides the specific legal framework governing the conduct of hostilities, while International Human Rights Law (IHL) continues to apply as relevant without overriding it. In situations of Grey Zone Activity or Internal Disturbance, where International Humanitarian Law does not apply, International Human Rights Law provides the primary applicable legal framework in addition to International Criminal Law (ICL) in narrow circumstances. Users should also be aware that the relationship between the bodies of law can be complex and at times difficult to navigate.

This Annex takes into consideration the International Law obligations applicable to a Party depending on the nature of the Party (e.g. a State Party or non-State Party) and the context under which the security challenge arises, including Armed Conflict, Grey Zone Activity, or Internal Disturbances.

Kinetic and Digital Dimensions of Conflict

Digital and kinetic operations should not be understood as entirely separate spheres of conflict, given they often occur simultaneously and can be operationally integrated. For example, Cyber Attacks may precede or accompany a kinetic strike; Information Threats may support Military Objectives on the battlefield; and Internet Shutdowns may be enacted just following military strikes on a city.

Users should consider this relationship when negotiating and implementing a Digital ceasefire or De-escalation Agreement. Commitments to ceasing or de-escalating Digital Operations should not be interpreted or implemented in ways that facilitate, enable,

or provide cover for prohibited kinetic activity, nor should restraint in one domain be exploited to intensify hostilities in another. For example, a Party should not use a cessation or reduction of Cyber Attacks to create an operational advantage for increased kinetic attacks, nor should a Party exploit restored communications, networks, or Digital Infrastructure to identify or attack opposing forces or civilians.

Equally, a kinetic attack should not be treated as justification for breaching commitments relating to Digital Operations. Where the Parties intend violations or developments in one domain to have consequences for commitments in another, those consequences should be expressly agreed rather than assumed.

Parties should therefore coordinate between Digital and broader ceasefire and De-escalation arrangements where both are present. This could be achieved through common implementation and monitoring mechanisms; procedures for addressing operations that combine Digital and kinetic elements; protections against exploiting restored Digital services or infrastructure for hostile purposes; and mechanisms for managing alleged violations without triggering reciprocal escalation across domains.

Ultimately, the purpose of an Agreement is cessation or De-escalation. An Agreement's provisions should be interpreted and implemented in a manner that reduces opportunities for Parties to shift activities between Digital and kinetic means and prevents restraint in one domain from being exploited in another.

Freedom of Expression

Nothing in this Agreement should be interpreted or applied to unduly restrict lawful expression, including political speech, journalism, satire, or legitimate criticism. All provisions should be narrowly tailored and applied consistently with International Human Rights Law, including Article 19 of the ICCPR.

Background to this Handbook

The text of this Handbook is based on a combination of academic research, dozens of primary source interviews, and a review of historical and existing ceasefire and peace Agreements. Consultations with technical experts, diplomats, mediators, advisors, people on the ground in conflicts, and Parties currently or previously engaged in dialogue and mediation processes is ongoing to ensure that the provisions proposed directly meet the needs of existing conflict and security challenges.

The Handbook was developed with reference to the Public International Law and Policy Group's Ceasefire Drafter's Handbook.[1]

1 The Public International Law and Policy Group, *The Ceasefire Drafter's Handbook: An Introduction and Template for Negotiators, Mediators, and Stakeholders* (May 2013), https://static1.squarespace.com/

The authors recommend that Parties using this Handbook engage with technical experts who understand the Digital dimensions of the security challenge, the technologies being used, and how such uses might be monitored and verified. The authors also recommend scoping the full range of acts, both Digital and non-Digital, so Parties can address both or complement existing negotiations. Finally, the authors recommend the Parties work with lawyers to understand which acts of the other Party are already prohibited by International Law.

For further information, guidance, or training the drafters of this Agreement are available and can be contacted: **Brett Solomon** (contact@brettsolomon.info) and **Betsy Popken** (bpopken@berkeley.edu) of the of the Human Rights Center at UC Berkeley.

static/5900b58e1b631bffa367167e/t/5b730a224fa51ab1083c22bb/1534265892577/PILPG+Ceasefire+Drafter%27s+Handbook+%28Including%2BTemplate%2BCeasefire%2BAgreement%29-2.pdf.

1.0 Preamble

NOTE TO USERS

Preambles typically include the purpose of the Agreement; the motivations of the parties; relevant principles, history, and values; and the context that informs the interpretation of the provisions.

The Preamble provides a broad menu of provisions that Parties may select, modify, or omit according to the context and purpose of their Agreement. Not all provisions are intended for inclusion by Parties.

Parties should distinguish between language that provides context, recognizes principles or marginalized groups, or expresses shared aspirations, and substantive commitments intended to guide conduct. Where the latter are included, Parties should consider corresponding operative and monitoring provisions.

An expansive Preamble may be appropriate in some contexts, while in others a shorter Preamble may better facilitate negotiation and Agreement. The provisions below are therefore options and should be selected and adapted as appropriate. Parties may therefore include all of these provisions, just a few of them, or none at all.

WE, the Parties to this Agreement, [Party A, Party B, ...]:

RECOGNIZING that the [Armed Conflict] [Grey Zone Activity] [Internal Disturbance] includes both non-Digital and Digital dimensions;

COMMITTED to understanding the nature, scope, harm, and cause of Prohibited Digital Operations in the drafting and successful implementation of this Agreement;[2]

RECOGNIZING that Prohibited Digital Operations can be carried out in the context of an Armed Conflict, in the Grey Zone, and in Internal Disturbances;

DETERMINED to address Prohibited Digital Operations that most harm civilians;

RECOGNIZING that there may be participants or stakeholders in the [Armed Conflict] [Grey Zone Activities] [Internal Disturbances] that are not Parties to this Agreement, yet critical to its success;

2 Parties may wish to conduct a Digital Conflict Analysis to support the drafting of this Agreement which would outline the Digital elements of the conflict, their interaction with conventional operations, the technologies involved, and the actors engaged. For an example of a Cyber Conflict Analysis, see Sean Kane and Govinda Clayton, *Cyber Ceasefires: Incorporating Restraints on Offensive Cyber Operations in Agreements to Stop Armed Conflict* (Zurich: Center for Security Studies (CSS), ETH Zurich, 2021), https://css.ethz.ch/content/dam/ethz/special-interest/gess/cis/center-for-securities-studies/pdfs/MediationResources_CyberCeasefires.pdf.

MINDFUL of the importance of reducing barriers to participation, including those related to geography, gender, language, and literacy, and of ensuring the meaningful inclusion and representation of relevant stakeholders in the drafting, implementation, and review of this Agreement;

RECOGNIZING that the actions, policies, services, and influence of Third Party actors including Proxy Actors, Cyber Mercenaries, Third Party States, Information and Communication Technology (ICT) Companies, and civil society organizations may affect the implementation, effectiveness, and outcomes of this Agreement;

COMMITTED to the full, complete, and permanent end to the [Armed Conflict] [Grey Zone Activity] [Internal Disturbance];

COMMITTED to the De-escalation of the [Armed Conflict] [Grey Zone Activity] [Internal Disturbance];

COMMITTED to upholding International Law and to promoting full respect for [International Humanitarian Law in the Armed Conflict,] International Criminal Law, and International Human Rights Law;[3,4]

EMPHASIZING that no provisions in this Agreement undermine or diminish each Party's obligations under International Law;

RECOGNIZING that in situations of Armed Conflict, International Humanitarian Law constitutes the lex specialis governing the conduct of hostilities. International Human Rights Law continues to apply alongside International Humanitarian Law but does not override International Humanitarian Law protections specifically designed for Armed Conflicts. In situations of Grey Zone Activity or Internal Disturbance that do not amount to Armed Conflict, International Human Rights Law remains a primary applicable legal framework alongside other applicable rules of International Law, including the UN Charter, International Criminal Law, and relevant treaty and customary international law;

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3 Please note when using these provisions that International Humanitarian Law applies only where the threshold of an international or non-international Armed Conflict has been met. Consequently, war crimes are limited to violations committed in the context of an Armed Conflict. However, genocide, crimes against humanity, and the crime of aggression may be committed both during Armed Conflict and outside it, including in situations of Internal Disturbance, political violence, or other forms of organized violence that do not reach the threshold of Armed Conflict. International Human Rights Law continues to apply at all times, including during Armed Conflict, alongside International Humanitarian Law where applicable . Office of the United Nations High Commissioner for Human Rights, International Legal Protection of Human Rights in Armed Conflict, 2011, 7–8, (noting that International Humanitarian Law "applies only in Armed Conflict," while human rights law applies at all times); Rome Statute of the International Criminal Court, 17 July, 1998, 2187 U.N.T.S. 90, arts. 6–8; International Covenant on Civil and Political Rights, 16 December 1966, 999 U.N.T.S. 171.

4 For further detail on the incorporation of international law frameworks into Agreements, see the Appendix contained in the Handbook. See also Kane and Clayton, *Cyber Ceasefires*, 38–44.

COMMITTED to protecting civilians, including respecting the rights of women, youth and Children, and addressing the needs of persons and groups who may be disproportionately affected, and to protecting civilian infrastructure and private and public property including cultural heritage;[5]

RECOGNIZING that access to the internet and other means of information sharing and communication, Digital and otherwise, is essential to protecting rights and that people's lives, security, and wellbeing rely upon that access, particularly during times of [Armed Conflict] [Grey Zone Activity] [Internal Disturbance];[6]

RECOGNIZING that the same rights that people have offline must also be protected and respected online;[7]

APPRECIATING that the use of technologies and the technologies and methods used in [Armed Conflict] [Grey Zone Activity] [Internal Disturbance] continue to evolve rapidly, and that technologies and methods not expressly referenced in this Agreement may nevertheless fall within its scope where their use is consistent with the activities or effects addressed herein, without prejudice to the ability of the Parties to amend this Agreement as necessary;[8]

RECOGNIZING that empowering civilians through public digital literacy education and rights awareness is essential to nurturing a population's agency, enabling communities to identify Information Threats and supporting the successful implementation of this Agreement;

RECOGNIZING that the use of Artificial Intelligence in Prohibited Digital Operations may accelerate and amplify those operations, increase risks to civilians, and undermine human oversight and accountability, and Emphasizing the importance of ensuring that the

5 Language inspired by *Terms and Conditions of the Cessation of Hostilities in Yemen*, 10 April, 2016, "Procedural Measures," clause 5, 2, unofficial translation by Neil Russell and Robert A. Forster (University of Edinburgh), https://www.peaceAgreements.org/media/documents/ag1586_59259d4b19f22.pdf.

6 UN Human Rights Council, Resolution 57/29, Promotion, protection and enjoyment of human rights on the Internet, A/HRC/RES/57/29 (2024); ICRC, Protecting Civilians Against Digital Threats During Armed Conflict (2023).

7 Human Rights Council, *The Promotion, Protection and Enjoyment of Human Rights on the Internet*, U.N. Doc. A/HRC/20/L.13, 2012, (adopted without a vote) (affirming that the same rights people have offline must also be protected online); Human Rights Council, *The Promotion, Protection and Enjoyment of Human Rights on the Internet*, U.N. Doc. A/HRC/RES/32/13, 18 July, 2016, ("Condemn(s) unequivocally measures to intentionally prevent or disrupt access to or dissemination of information online"). Subsequent UN interpretations and resolutions suggest that internet access is increasingly recognized as essential to the effective exercise of fundamental human rights.

8 International humanitarian law applies "to all forms of warfare and to all kinds of weapons." International Court of Justice, *Advisory Opinion on the Legality of the Threat or Use of Nuclear Weapons*, 8 July, 1996, sec. 86; *Protecting civilians in good faith: the updated Commentary on the Fourth Geneva Convention* https://blogs.icrc.org/law-and-policy/2025/10/21/protecting-civilians-in-good-faith-the-updated-commentary-on-the-fourth-geneva-convention/.

development, deployment, and use of Artificial Intelligence remains subject to applicable International Law and meaningful human control;

OBSERVING that while not all Prohibited Digital Operations have an immediate or direct impact on civilians, there are often indirect impacts with secondary effects that cause harm, physical damage, or death;

RECOGNIZING the role of women as advocates of peace on and offline, as well as the heightened risks, danger, and insecurity that women face online due to the use of Digital means such as Deepfakes, as the subject of Misinformation and Disinformation, and as targets of Technology Facilitated Gender Based Violence (TFGBV);[9]

RECOGNIZING that Digital harms impact intersectional identities differently – including but not limited to gender, class, religion, ability, ethnicity, sexual orientation, age, and migration status – and therefore an inclusive, context-specific approach is needed to address these harms;

ACKNOWLEDGING that where this Agreement is incorporated into or annexed to an Agreement governing non-Digital aspects of [an Armed Conflict] [Grey Zone Activity] [an Internal Disturbance], it is an integral part of that Agreement and any failure to comply with its provisions constitutes a breach of that Agreement. Where there is a separate non-Digital Agreement, it remains binding and operates in parallel to this Agreement, and unless expressly provided, a breach of one does not constitute a breach of the other;

COMMITTED to all current and previous valid Agreements between the Parties;

Hereby agree to be bound by the provisions.

9 The Parties can also recall relevant commitments under the Women, Peace and Security (WPS) agenda, including UN Security Council Resolution 1325 (2000), concerning women's participation, protection, and the integration of gender perspectives in peace and security.

2.0 Entry into Force

NOTE TO USERS

Entry into force provisions define the exact time and date the Agreement begins, the conditions that must be satisfied before it begins, and/or the mechanism through which it becomes effective.

Prior to an Agreement entering into force, Parties typically establish mechanisms for addressing breaches to the Agreement, such as consultation, review, suspension, or termination, before the Agreement enters into force.

The provisions below are options and should be selected and adapted as appropriate. Parties may therefore include all of the provisions, just a few of them, or none at all.

The Parties agree to abide by the terms of this Agreement [upon signature of the Agreement] [on DATE at TIME] [upon the following conditions] [at a date and time decided by the Digital Monitoring Commission].

The Agreement will remain in effect [indefinitely] [for a PERIOD OF TIME from the effective date, unless extended by mutual consent of all Parties].[10]

10 More details on Entry into Force provisions can be found in Public International Law & Policy Group, *Ceasefire Drafter's Handbook*.

3.0 Prohibited Digital Operations

NOTE TO USERS

This section is modeled after the Prohibited Acts section in a ceasefire Agreement, which identifies the specific actions the Parties agree to cease and therefore may not perform during the period the Agreement is in effect. Essentially, Prohibited Digital Operations are Digital Operations the Parties agree to cease under the Agreement.

If Parties are unable to agree to prohibit Digital Operations, they view cessation as infeasible or undesirable, or they wish to actively limit but not comprehensively cease certain activities, they can instead agree to de-escalate Digital Operations. In that case, Parties could instead use the term "De-escalated Digital Operations" and language such as "reduce" or "mitigate" or "de-escalate" instead of "cease" or "stop" or "prohibit." Parties could then set a numerical or percentage threshold for De-escalation or set a frequency-based, severity-based, or impact-based threshold. For example, Parties could agree to reduce the number of Cyber Attacks or Internet Shutdowns over a specified period, limit the duration or geographic scope of such disruptions, reduce the scale of Information Interference campaigns, or establish measurable targets for reducing civilian harm. Such commitments could be time-bound, progressively strengthened, and subject to monitoring and verification to assess compliance and progress toward De-escalation. This Handbook is structured around Prohibited Digital Operations, but each provision can be adapted to be a De-escalated Digital Operation.

Such provisions vary in their level of detail. Some Agreements have broad prohibited acts, simply prohibiting the parties from using any kind of military force, while others provide a detailed list to make it very clear to the Parties what may constitute a breach.

This section first provides broad provisions the Parties may use to cease Prohibited Digital Operations against Civilian Objects, Military Objectives, and Dual-Use objects. The section is then divided into three categories so the Parties can choose provisions that are specific to their particular context: (1) Internet Interference; (2) Information Threats; and (3) Cyber Attacks.

Parties may have different reasons for prohibiting a Digital Operation under an Agreement, including the level of harm it may cause, the risk of escalation, or the threat it poses to a ceasefire or De-escalation process. However, provisions concerning Prohibited Digital Operations should be negotiated, agreed upon, and respected by all Parties.

In agreeing to Prohibited Digital Operations provisions, Parties should be aware of and distinguish between operations directed at Military Objectives and those directed at civilians and Civilian Objects, including civilian infrastructure and services. Parties should also consider that the immediate target may differ from the object or persons ultimately affected, and that harm may spread across interconnected systems, emerge over time,

or extend beyond the intended target. Provisions may therefore address not only what may be targeted, but also the direct, indirect, and reasonably foreseeable harm that an operation may cause to Civilian Objects and/or the effect on Military Objectives.

Prohibited Digital Operations agreed to by the Parties does not necessarily mean that they are prohibited under International Law. Nothing in this Agreement shall be interpreted as diminishing the protections afforded under International Law.

Parties may agree to refrain from otherwise lawful Digital Operations in furtherance of restraint, De-escalation, confidence-building, or the cessation of hostilities.

The provisions below are options and should be selected and adapted as appropriate. Parties may wish to add more specificity to the provisions based on their particular situation. Parties may include all of the provisions, just a few of them, or none at all.

The Parties agree to suspend all Prohibited Digital Operations for the duration of this Agreement, as further specified below:

Prohibited Digital Operations include attacks against civilians and Civilian Objects both of which are protected under International Humanitarian Law in Armed Conflict irrespective of this Agreement. This includes any operation intended to, or reasonably expected to, disable, disrupt, degrade, manipulate, or destroy civilian infrastructure, communications, or services.

Prohibited Digital Operations also include attacks against Military Objectives. This prohibition applies irrespective of whether such operations would otherwise be lawful under International Humanitarian Law in the context of Armed Conflict.

Parties shall not conduct Prohibited Digital Operations against Dual-Use objects that serve both civilian and military purposes. In cases of uncertainty as to whether an object is a Military Objective or Civilian Object, it shall be presumed to be civilian.

Parties shall refrain from conducting Prohibited Digital Operations, including Internet Interference, Information Threats, and Cyber Attacks, that disrupt, compromise, or unduly interfere with humanitarian operations, personnel, communications, Data, or systems, or that undermine humanitarian access, safety, neutrality, independence, impartiality, or acceptance.

3.1 Internet Interference

NOTE TO USERS

These provisions seek to preserve the availability and integrity of the internet as essential to communication, access to information, and the functioning of society in times of Armed Conflict, Grey Zone Activity, and Internal Disturbance.

Internet Interference can take many forms. It may be indiscriminate, affecting entire countries and populations. In other contexts, disruptions may be highly targeted, affecting specific regions, neighborhoods, or communities, including along ethnic, religious, or political lines. Interference may also vary in duration and severity, ranging from temporary Throttling or blocking of particular services or sites to prolonged or complete shutdowns.

Internet Interference can be identified through open-source monitoring, but determining its cause, attribution, and intent may be significantly more difficult. Monitoring mechanisms can therefore establish appropriate methodologies and evidentiary standards for assessing alleged violations and distinguishing deliberate disruption from technical failures or the effects of kinetic operations.

If Parties instead agree to limit or de-escalate Internet Interference, they can establish measurable targets, such as reducing the number or frequency of incidents by a specified percentage, limiting their duration or severity, or reducing their geographic scope or impact on civilians.

The provisions below are options and should be selected and adapted as appropriate. Parties may therefore include all of the provisions, just a few of them, or none at all.

The Parties agree that an Agreement to cease Internet Interference against another Party does not enable a Party or Proxy Actor to use, conduct, engage in, escalate, or initiate kinetic attacks.

No Party to this Agreement shall use, conduct, engage in, or initiate the following acts of Internet Interference:

3.1.1 Internet Shutdowns

The Parties shall not intentionally disrupt or shut down access to the internet, in whole or in part, including through bandwidth Throttling, deliberate reductions in network speeds or capacity, or efforts to disconnect the other Party from the global internet.

Parties shall refrain from taking any measures that result in Internet Shutdowns or disruption of internet services within the territories under their control, including occupied territories or in sovereign jurisdictions where they have the capacity to shut down or disrupt the internet. This includes any acts that would hinder access to online communications, humanitarian services, information sharing, public discourse, personal financial resources, or other essential services that rely on the internet.

If an Internet Shutdown is perpetrated, the Parties agree that they are responsible for restoring the network as quickly as possible.

3.1.2 Internet Infrastructure Attacks

The Parties agree that no Party to this Agreement shall damage or disrupt the Public Core or availability of the internet.[11]

The Parties shall refrain from conducting Cyber Operations or physical attacks causing destruction, damage, or the seizure or disabling of communications infrastructure, including but not limited to internet exchange points, Data centers, undersea cables, satellite and space-based internet services, broadcast facilities, and telecommunications towers.

This prohibition applies to civilian, Dual-Use, and military communications infrastructure, including infrastructure that may otherwise constitute a Military Objective under International Humanitarian Law.

The Parties shall cease the disruption of internet routing, domain name systems, and traffic exchange mechanisms.

The Parties shall refrain from using legal, administrative, or other measures to restrict or prevent civilian access to the Internet, including by criminalizing or prohibiting the possession or use of internet access equipment, confiscating such equipment, penalizing persons for providing or facilitating internet access, or restricting the use of tools, including Virtual Private Networks (VPNs), that enable access to the Internet.

Parties shall protect civilian personnel engaged in the rollout, maintenance, restoration, or repair of ICT infrastructure and shall not attack, threaten, obstruct, or otherwise interfere with their work. Civilian personnel include cyber incident responders and other persons tasked with responding to and investigating security incidents.

Parties shall refrain from disrupting power systems where such disruption is intended to or can reasonably be expected to disable civilian ICT infrastructure.

Parties shall facilitate the safe and timely provision of fuel and other essential supplies necessary to operate, maintain, and restore civilian ICT infrastructure, including backup power systems and generators.

11 The "Public Core" of the internet refers to the critical, foundational infrastructure that enables the global internet to function reliably and securely, including packet routing and forwarding, naming and numbering systems, cryptographic mechanisms of security and identity, and physical transmission media. See Global Commission on the Stability of Cyberspace, *Definition of the Public Core, to Which the Norm Applies*, 2018, https://cyberstability.org/public-core/; Global Commission on the Stability of Cyberspace, *The Paris Call for Trust and Security in Cyberspace*, 2018, principle 2, https://pariscall.international/en/; Global Network Initiative, The Consequences of Network Shutdowns and Service Disruptions: A One-page Guide for Policymakers, 2017, https://globalnetworkinitiative.org/the-consequences-of-network-shutdowns-and-service-disruptions-a-one-page-guide-for-policymakers/.

3.1.3 Electronic Jamming

The Parties shall refrain from Electronic Jamming, signal interference, or other electromagnetic actions intended to disrupt, degrade, or deny access to communications networks or services, including radio, satellite, mobile, and internet connectivity.

Parties agree to resolving tensions resulting from unintended spectrum interference through technical negotiations between spectrum regulators.

3.1.4 Third Party Internet Interference

The Parties shall not direct, support, or knowingly permit interference with internet availability by Third Parties, and shall take reasonable measures to prevent such interference from their territory or through infrastructure under their control. Where such interference originates from or is conducted through the territory or infrastructure of a Third State, the Parties shall use reasonable efforts to prevent or cease its interference.

Parties agree not to provide or facilitate Digital connectivity for the purpose of enabling Prohibited Digital Operations or to otherwise undermine the terms of this Agreement.

3.1.5 Humanitarian and Emergency Connectivity Disruptions

The Parties shall not disrupt, degrade, or otherwise interfere with the continued availability of internet and communications services necessary for humanitarian operations, medical services, emergency response, civilian warning systems, and access to essential public information and services.

3.1.6 Artificial Intelligence-Enabled Internet Interference

The Parties shall refrain from using Artificial Intelligence systems to initiate, automate, coordinate, or facilitate Internet Interference prohibited under this Agreement, including Internet Shutdowns, the disruption of communications infrastructure, and the manipulation of network routing and access to essential Digital services.

3.2 Information Threats

NOTE TO USERS

These provisions aim to protect the integrity of the information environment by limiting coercive, deceptive, and manipulative information related practices that threaten public trust, democratic processes, and civilian protection in times of Armed Conflict, Grey Zone Activity, and Internal Disturbance, including information operations that undermine the Agreement or are directed against the Parties to the Agreement. No provisions

should be included in the Agreement that violate the rights of individuals, including their rights to freedom of expression, access to information, and privacy.[12]

To strengthen the enforceability of an Agreement, particularly with respect to Misinformation, Disinformation, and Hate Speech, Parties should tailor the provisions in this section to identify and expressly prohibit specific narratives, content, or practices relevant to the conflict and security challenges they face. Parties may wish to narrow the prohibited Information Threats to a closed list of objectively verifiable acts that cause harm in their particular context. For example, if relevant, the Parties may agree to prohibit (1) fabricated official communications such as statements falsely attributed to the other Party's leadership or the Monitoring Commission; (2) false humanitarian information including announcements of corridors, safe zones, or evacuation routes that are false and issued with intent to deceive; (3) identified individual incitement such as content that names a specific individual and calls for violence against them.

Information Threats may occur in local, tribal, or Indigenous languages. Assessing alleged violations may require substantial linguistic, contextual, and technical expertise that may not be available in real time. Parties may therefore consider linguistic diversity and local cultural contexts when establishing monitoring and response mechanisms.

If Parties instead agree to limit or de-escalate Information Threats, they can establish measurable targets, such as reducing the number or frequency of incidents by a specified percentage, limiting their scale, reach, or severity of the threats, or establish thresholds to reduce their harmful impact on civilians.

The provisions below are options and should be selected and adapted as appropriate. Parties may therefore include all of the provisions, just a few of them, or none at all.

No Information Threats provision in this Agreement shall be interpreted to restrict expression protected under International Human Rights Law, including Articles 19 and 20 of the International Covenant on Civil and Political Rights (ICCPR),[13] including political, academic, or artistic speech, satire, journalism, debate, dissent, or criticism.
The Parties agree that an Agreement to cease Information Threats against another Party does not enable a Party or Proxy Actor to use, conduct, engage in, or initiate any other form of kinetic attack.

No Party to this Agreement shall use, conduct, engage in, or initiate the following acts of Information Threats:

12 Human Rights Council, U.N. Doc. A/HRC/20/L.13 (29 June 2012) (affirming that the same rights held offline must be protected online); Human Rights Council, U.N. Doc. A/HRC/32/L.20 (27 June 2016) (condemning measures to intentionally prevent or disrupt online access to information).

13 UN General Assembly, International Covenant on Civil and Political Rights (ICCPR), United Nations, Treaty Series, vol. 999, p. 171, 16 December 1966, https://www.refworld.org/legal/Agreements/unga/1966/17703.

3.2.1 Misinformation and Disinformation

All Parties agree to take reasonable steps to prevent creating false information which is then disseminated or amplified as Misinformation. Parties also agree to take reasonable steps to avoid creating, disseminating, or amplifying Disinformation or otherwise harmful forms of information, including through Proxy Actors, in ways that may escalate hostilities, incite violence, or undermine peace efforts.

Parties agree that content prohibited under this Agreement includes the fabrication or distortion of material facts, such as the announcement of a false humanitarian corridor or incorrect location of conflict zones – which may amount to perfidy, the deceptive impersonation or synthetic reproduction of the likenesses or voice of political or public officials or representatives of humanitarian organizations spreading false information, or the hostile manipulation of public perception against peace negotiators or peaceful protestors.[14]

Parties agree that spreading distrust in the Parties to the Agreement, the negotiators of the Agreement, the process that developed the Agreement, and the Digital Monitoring Commission is prohibited under this Agreement.

3.2.2 Manipulated Media

Parties agree not to create, distribute, or endorse manipulated or synthetic media, such as Deep Fake photographs, audio, images, and video, where there is a risk of it leading to or inciting violence or undermining peace efforts. This provision expressly prohibits content that leads to or incites Technology-facilitated Gender Based Violence.[15]

Parties shall not knowingly disseminate or amplify authentic media presented in a false or misleading context, including media from other conflicts or earlier events, where its presentation is intended or reasonably likely to mislead affected communities and create a risk of inciting violence or undermining peace efforts.

14 Note that in an Armed Conflict the following acts constitute violations of International Humanitarian Law independently of this Agreement: Digital Operations constituting perfidy within the meaning of customary International Humanitarian Law Rule 65, including false announcements of humanitarian corridors or safe zones used to conduct attacks; misuse of the protective emblems of the International Red Cross and Red Crescent in Digital communications; and false Digital communications impersonating the United Nations or other protected organizations for the purpose of conducting hostile operations.

15 Language inspired by Govinda Clayton, Sean Kane, and Maude Morrison, "Including Digital Technologies in Peace Agreements," in *Still Time to Talk: Adaptation and Innovation in Peace Mediation*, ed. Teresa Whitfield, Accord 30 (London: Conciliation Resources, 2024), table 2 at 98, https://rc-services-assets.s3.eu-west-1.amazonaws.com/s3fs-public/Accord_30_Still_Time_to_Talk_-_Adaptation_and_innovation_in_peace_mediation_0.pdf.

3.2.3 Inauthentic Behavior

Parties shall not create, deploy, coordinate, or support fake accounts, automated bot networks, troll farms, synthetic identities, impersonation campaigns, or other forms of coordinated inauthentic behaviour intended to manipulate public discourse, deceive populations, impersonate persons or organizations, suppress participation, or undermine the peace process.

Parties shall refrain from using coordinated or deceptive means to manipulate social media platform algorithms, recommendation systems, engagement metrics, or other Digital systems in order to artificially amplify deceptive, divisive, or violent content, or to distort the visibility, reach, or credibility of information online.

3.2.4 Doxxing

Parties agree to refrain from engaging in, facilitating, or enabling Doxxing of individuals, including civilians, or groups in a manner that endangers their safety, privacy, or well-being.

Parties agree to refrain from exposing any personally identifying details of civilians, journalists, humanitarian workers, conflict mediators, peace negotiators, Parties, or other agreed persons in ways that could lead to harassment, intimidation, persecution, or physical harm.

3.2.5 Online Incitement to Violence

All Parties shall refrain from engaging in or facilitating Online Incitement to Violence, including any form of online harassment, intimidation, provocation, or hatred toward any person or group of persons for their beliefs that has a reasonable likelihood of leading to violence. This prohibition includes false, unfounded, unsubstantiated, or politically-motivated accusations of apostasy, treason, Terrorism, or any other similar charges.[16]

The Parties understand that the Rabat six-part threshold test to evaluate whether content rises to Online Incitement to Violence includes an assessment of the context, the speaker, the intent, the content, the extent, and the likelihood of harm.

16 Ibid.

Parties shall refrain from posting or otherwise sharing content that fuels regionalist, racial, ethnic,[17] sectarian, or tribal divisions that could threaten the peace,[18] including content that targets specific individuals, such as peace negotiators and mediators.[19]

Parties agree they will not use social media and communications platforms as tools for violence, radicalization, or societal unrest.

Parties agree to work, if possible, with social media and communications platforms to detect and remove content that may be in breach of this Agreement.

The Parties shall take particular care to prevent Online Incitement to Violence that targets, exploits, recruits, or otherwise places young people and Children at heightened risk, including students, activists, and peacebuilders.

3.2.6 Hate Speech

All Parties shall refrain from creating, drafting, disseminating, promoting, or endorsing Hate Speech that incites, or has a reasonable probability to incite, discrimination, hostility, or violence.[20] This prohibition extends to public statements, media, broadcast, and social media and communications platforms,[21] as well as Hate Speech in the form of text, visuals, audio, and audiovisuals, including symbols, slogans, or imagery.

3.2.7 Online Recruitment and Encouragement

Parties agree not to engage in Online Recruitment or encouragement of Cyber Mercenaries, hacktivist groups, Terrorist Organizations, Child soldiers, Children, Criminal Organizations, or other Third Parties for the purpose of conducting, facilitating, or

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17 Agreement on the Cessation of Hostilities, Protection of Civilians and Humanitarian Access, Republic of South Sudan, 21 December, 2017, Other Prohibited Acts, 4.1. https://pax.peaceAgreements.org/media/documents/ag1966_5b368bd3e5272.pdf.

18 Language inspired by *Myanmar Code of Conduct for Political Parties and Candidates*, 2015, section 4.3.2(c) https://www.peaceAgreements.org/Agreements/1518/coding/.

19 As per Clayton, Kane, and Morrison, "Including Digital Technologies in Peace Agreements," table 2, 98.

20 Office of the United Nations High Commissioner for Human Rights, *Rabat Plan of Action on the Prohibition of Advocacy of National, Racial or Religious Hatred That Constitutes Incitement to Discrimination, Hostility or Violence*, U.N. Doc. A/HRC/22/17/Add.4, 11 January, 2013, 29, https://www.ohchr.org/sites/default/files/Rabat_draft_outcome.pdf.

21 See *Samburu and Turkana Ceasefire Agreement*, Kenya, 22 June, 2015, 2 https://www.peaceAgreements.org/media/documents/ag1950_5b36782c6382f.pdf (calling for the prosecution of individuals who engage in hate speech or disseminate false information that incites ethnic hostility and emphasizing that "ELITES" must immediately cease spreading such content on social media); *Grassroots Agreement to Promote National Dialogue in Yei River State and South Sudan*, Uganda, 30 April, 2017, 4, https://www.peaceAgreements.org/media/documents/ag2071_5ca7554c7903a.pdf.

For additional comprehensive language see *Monitoring of social media provisions in peace Agreements*, Brief by HD, Build Up, and UNDPPA, 2024, https://hdcentre.org/insights/monitoring-of-social-media-provisions-in-peace-Agreements-brief-by-hd-build-up-and-un-dppa/.

supporting Prohibited Digital Operations under this Agreement. The Parties understand that Online Recruitment also includes tacit encouragement such as directly implying there will be no repercussions rather than direct recruitment.

3.2.8 Malicious Online Advertisements

Parties agree not to pay for, sponsor, or otherwise promote Online Advertisements that spread Misinformation or Disinformation, constitute propaganda for war, incite violence or hostility, promote or glorify Armed Conflict, or otherwise undermine trust between the Parties, such as encouraging attacks on or blockages of humanitarian aid or inciting ethnic cleansing.

3.2.9 Interference with Humanitarian Information and Data

The Parties shall not interfere with, manipulate, falsify, or unduly access information or Data relating to humanitarian operations, including information or Data concerning civilians, aid delivery, or humanitarian personnel and missions. Parties shall refrain from undermining humanitarian neutrality, independence, impartiality, or acceptance among affected populations.

The Parties shall not disclose, transfer, or otherwise share humanitarian Data, including personally identifiable information, with Third Parties where they know or reasonably should know that such Data may be used to harm civilians.

3.2.10 Harassment of Journalists and Media

The Parties shall not harass, intimidate, or conduct Disinformation campaigns against journalists, media organizations, or news platforms. This prohibition also applies where such actions are conducted against or through State-controlled, State-directed, or State-supported media.

3.2.11 Intimidating Diaspora

The Parties shall refrain from intimidating, censoring, threatening, or taking punitive measures against members of diaspora communities, including where such persons reside outside their country of origin.

3.2.12 Artificial Intelligence-Enabled Information Threats

The Parties shall refrain from using Artificial Intelligence systems to generate, manipulate, disseminate, or amplify Information Threats, as defined in this Agreement.

3.3 Cyber Attacks

NOTE TO USERS

These provisions prohibit hostile Cyber Operations used to gain unauthorized access to information, conduct Surveillance, and disrupt or manipulate Digital systems.

In the context of an Armed Conflict, not all such Cyber Operations constitute "attacks" under International Humanitarian Law; for example, Digital Surveillance or the use of Spyware does not necessarily constitute a Cyber Attack under International Humanitarian Law even if it is a hostile Cyber Operation.

States sometimes conduct Cyber Attacks against the military, or administrative or political infrastructure of another State in lieu of kinetic attacks. States also conduct Cyber Operations to disrupt criminal networks abroad as a routine part of law enforcement operations. For these reasons, Parties may be reluctant to accept a complete prohibition on all Cyber Operations. Instead, they may wish to focus on prohibiting or limiting the most harmful and destabilizing forms of cyber activity, particularly those affecting civilian populations and critical infrastructure.

Parties agreeing to cease Cyber Attacks should make clear in the Agreement that doing so does not enable any Party to conduct kinetic attacks. Parties should make clear that commitments to cease Cyber Attacks do not authorize or justify the commission of kinetic operations, and the Parties should consider how Digital and kinetic ceasefire commitments interact to prevent escalation across domains.

If Parties instead agree to limit or de-escalate Cyber Attacks, they can establish measurable targets, such as reducing the number or frequency of attacks by a specified percentage, limiting their scale, severity, or duration, or reducing their harmful impact on civilians and civilian infrastructure.

The provisions below are options and should be selected and adapted as appropriate. Parties may therefore include all of the provisions, just a few of them, or none at all.

The Parties agree that a commitment to cease Cyber Attacks against another Party shall not be interpreted as authorizing, permitting, justifying, or otherwise providing a basis for the use of any other form of kinetic attacks by any Party or Proxy Actor.

No Party to this Agreement shall use, conduct, engage in, authorize, or initiate Cyber Attacks on the following persons or objects, or using the following means or methods:

3.3.1 Surveillance and Spyware

The Parties shall refrain from conducting or facilitating unlawful or arbitrary Digital Surveillance activities, including the use or deployment of Spyware or other intrusive technologies that enable covert access to the devices, networks, communications, or Data of civilians, including humanitarian actors, journalists, human rights defenders,

or other humanitarian personnel. This includes but is not limited to tracking mobile devices to listen to the conversations of journalists with sources and surveilling the email communications of humanitarian actors to disrupt their activities.

The Parties shall not conduct Digital Surveillance, such as the use of Spyware, against civilians, journalists, humanitarian workers, or peace negotiators, including their own populations, except pursuant to lawful authority consistent with International Human Rights Law, and in accordance with the principles of legality, necessity, non-discrimination, proportionality, reasonableness, and in accordance with applicable International Law, including human rights, and with effective oversight.[22]

The Parties shall refrain from using social media and communications platforms to track, target, intimidate, or otherwise take punitive action against dissenting or critical individuals on the basis of political views or other protected expression online.

The Parties reaffirm their obligation to respect the right to privacy, and shall refrain from interfering with the privacy of individuals within and beyond their territory in accordance with applicable International Law.

3.3.2 Hacking

Parties agree to refrain from conducting or facilitating cyber intrusions, Hacking, or other forms of unauthorized access to penetrate official or personal computer network, system, or digital device of civil society, women's groups, human rights defenders, community leaders, peace negotiators, and other individuals or groups targeted for their identity, role, or perceived affiliation, as well as the general public.

Parties shall refrain from accessing, exfiltrating, manipulating, corrupting, poisoning, falsifying, deleting, or otherwise compromising the availability, integrity, or reliability of Data belonging to civilians, humanitarian personnel or entities, or public institutions. This includes civil and administrative Data and systems, including electoral records, population registries, civil documentation, social security records, and other Data essential to the provision of civilian services.

The Parties shall refrain from conducting or facilitating Cyber Operations against the military systems, networks, communications, or devices of other Parties that are intended to, or reasonably could be expected to, disrupt, degrade, manipulate, or impair the functioning, reliability, or control of such systems.

22 International Covenant on Civil and Political Rights (1966), arts. 17, 19, 21, 22; Human Rights Council, U.N. Docs. A/HRC/20/L.13 (2012) and A/HRC/32/L.20 (2016); Human Rights Committee, General Comments No. 16 (1988), No. 34 (2011), and No. 37 (2020); UN General Assembly, U.N. Docs. A/RES/68/167 (2013) and A/RES/73/179 (2018); Special Rapporteur on Freedom of Expression, U.N. Doc. A/HRC/23/40 (2013).

Parties agree to refrain from Hack Back operations against Digital systems outside their control, including in response to an actual or suspected Cyber Operation. This does not prevent defensive measures undertaken within systems under a Party's control.

3.3.3 Malware

Parties agree to refrain from deploying, distributing, transferring, or utilizing Malware, or any comparable or related tools, including ransomware and other extortion-based Cyber Operations, to infiltrate, compromise, or disrupt the integrity, security, or functionality of any computer or Digital systems, networks, or Data belonging to or affecting other Parties to the Agreement, civil society organizations, human rights defenders, and humanitarian organizations.

Parties agree to refrain from testing Malware with the exception of testing in isolated environments solely for the purpose of defensive analysis or removal. The Parties understand that for certain types of Malware analysis, such as correctly responding to a Domain Name System query, a limited set of network access may be required, but they agree to otherwise limit interconnectivity.

This Malware prohibition extends to attacks on civilians, the general public, journalists, media organizations, civil society actors, humanitarian personnel, political actors, peace negotiators, or individuals targeted on the basis of their identity.

3.3.4 Denial of Service (DoS) and Distributed Denial of Service Attacks (DDoS)[23]

All Parties agree not to conduct, support, or knowingly facilitate any Denial of Service or Distributed Denial of Service Attacks against the computer systems, networks, services, websites, or critical infrastructure of another Party. This prohibition includes any actions intended to shut down, interrupt, disrupt, degrade, destroy, or render unavailable essential services and communications, Digital Infrastructure, Critical Infrastructure, websites, and social media and communications platforms used by the public and Parties to the Agreement.

3.3.5 Phishing and Spear Phishing

Parties agree that Phishing to obtain sensitive and private Data and information about another Party, including actors involved in peace negotiations, is prohibited.

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23 Two early examples of Distributed Denial of Service Attacks include Estonia (2007) and Georgia (2008). Pamment, James, et al., *Hybrid Threats: 2007 Cyber Attacks on Estonia* (Riga: NATO Strategic Communications Centre of Excellence), 2019, https://stratcomcoe.org/cuploads/pfiles/cyber_attacks_estonia.pdf#:~:text=In%20April%20and%20May%202007%2C%20Estonia%20became,by%20a%20Distributed%20Denial%20of%20Service%20(DDoS); Vladimir Socor, "The Cyber Dimension of Russia's Attack on Georgia," Jamestown Foundation, 12 August, 2008, https://jamestown.org/the-cyber-dimension-of-russias-attack-on-georgia/.

3.3.6 Critical Infrastructure Attacks

Parties shall refrain from conducting Prohibited Digital Operations that disrupt, damage, disable, degrade, manipulate, or otherwise compromise civilian Critical Infrastructure or its operation, including infrastructure supporting essential public and civilian services.

3.3.7 Weaponization of Digital Infrastructure and Systems

Parties shall not weaponize Digital Infrastructure, social media and communications platforms, AI systems, or commercial technologies in ways that cause or facilitate harm to civilians or Civilian Objects, or undermine their access to essential services. This may include the use of such technologies for mass Surveillance, AI-enabled targeting, algorithmic discrimination, systematic content suppression, Digital financial exclusion, or the denial or disruption of access to essential Digital services.

3.3.8 Artificial Intelligence-Enabled Cyber Attacks

The Parties shall refrain from developing, deploying, directing, or facilitating Artificial Intelligence systems, including autonomous AI agents, to conduct, coordinate, or amplify Cyber Attacks, as defined in this Agreement.

4.0 Third Parties

NOTE TO USERS

A Third Party is any person, group, organization, or other entity that becomes involved in the Armed Conflict, Grey Zone Activity, or Internal Disturbance either by assisting one or more of the Parties or by engaging in it as a non-signatory actor. Parties may wish to include provisions in Section 4 to ensure that Third Parties do not undertake or otherwise circumvent any prohibition contained in this Agreement.

These provisions apply to all Prohibited Digital Operations set out in Section 3 and to the relevant Third Parties including Proxy Actors, Cyber Mercenaries, Third Party States, and Information and Technology Communications Companies included in the Agreement.

Parties often address the involvement of Third Parties in an Armed Conflict, either by agreeing to prohibit the actions of those under their control or by agreeing more broadly that the activities of all Proxy Actors shall be prohibited without assigning responsibility.

*While the first option more precisely ties in the Parties to the Agreement, the second option may be easier for Parties to agree to. While Parties typically name the Proxy Actors over whom they have control, the Parties may instead choose to set a standard of control that can be applied by the Monitoring Commission. They may agree that the conduct of a specific Prohibited Digital Operation is attributable to a Party where that Party directed or exercised "effective control" over that specific operation (*Nicaragua *standard). Alternatively, the Parties may agree that every Prohibited Digital Operation conducted by an organized group may be attributable to a Party if that Party exercised "overall control" over the group at the time of the operation (*Tadić *standard), which may include financing and equipping the group or coordinating or assisting in the general planning of its activities.*

These provisions are intended to establish commitments agreed between the Parties and should not be understood as modifying or replacing the applicable rules of attribution or State responsibility under International Law. While the Parties may agree to these commitments, it does not necessarily determine whether such conduct is attributable to a Party under International Law.

If Parties instead agree to limit or De-escalate Digital Operations by Third Parties, they can establish measurable targets, such as reducing the number or frequency of such operations by a specified percentage, limiting their scale, scope, or severity, or reducing their harmful impact on civilians and civilian infrastructure.

The provisions below are options and should be selected and adapted as appropriate. Parties may therefore include all of the provisions, just a few of them, or none at all.

4.1 Proxy Actors

The Parties shall not use Proxy Actors to undertake or circumvent any prohibition contained in this Agreement.

The Parties agree not to finance, equip, train, or otherwise support Proxy Actors to conduct Prohibited Digital Operations and will take all reasonable, lawful, and appropriate steps to prevent and cease Prohibited Digital Operations by Proxy Actors. The Parties agree not to enable or tolerate infrastructure access for Proxy Actors.

Parties shall bear responsibility for breaches of this Agreement committed by Proxy Actors over which each Party exercises [Effective Control] [Overall Control]. This responsibility applies regardless of the territory from which the Prohibited Digital Operations are carried out. The Parties agree that the Digital Monitoring Commission shall be responsible for determining whether a Party has [Effective Control] [Overall Control] of a Proxy Actor.

Parties agree they have [Effective Control of a Proxy Actor's Prohibited Digital Operation] [Overall Control of a Proxy Actor] if the Party provided financial or technical support to the group [within 90 days preceding the Prohibited Digital Operation]; if the Party's infrastructure was knowingly made available to conduct the Prohibited Digital Operation; or if the Party had advance knowledge of the planned Prohibited Digital Operation and failed to take reasonable preventive measures.

The Parties commit to exercising control over the following Proxy Actors to prevent their commission of Prohibited Digital Operations under the terms of this Agreement: [Proxy Actor 1]; [Proxy Actor 2]; [Proxy Actor 3].[24]

Each Party shall disclose to the Monitoring Commission all Proxy Actors known to be acting on its behalf or under its control within [30 days of signature of this Agreement] and shall notify the Commission of material changes thereafter.

4.2 Cyber Mercenaries

The Parties shall not direct, sponsor, support, facilitate, or otherwise coordinate with Cyber Mercenaries or other non-State cyber actors to conduct or engage in Prohibited Digital Operations in violation of this Agreement.

4.3 Third Party States

The Parties shall not request, direct, encourage, or knowingly facilitate a Third Party State to conduct Prohibited Digital Operations or otherwise circumvent this Agreement.

24 Note to Users: Identification or designation of a Proxy Actor is not required for Section 4.1 to apply.

The Parties shall take steps to prevent Third Party States from engaging in Prohibited Digital Operations by using diplomatic pressure, applying economic sanctions, and restricting access to financial, technological, or other resources that facilitate such operations.

The Parties agree to take reasonable measures, within their capabilities and authorities, to prevent, discourage, or mitigate activities by Third Party States that could undermine the implementation or objectives of this Agreement. Nothing in this provision shall be interpreted as requiring a Party to guarantee the conduct of actors that are not under its direction or effective control.

The Parties agree to request the support of Third Party States in implementing this Agreement and abiding by their commitments under this Agreement.

4.4 Information and Communications Technology Companies

The Parties agree not to direct, request, sponsor, support, encourage, or otherwise seek to cause Information and Communications Technology Companies, including social media and communications platforms, satellite operators, cloud service providers, AI companies, or other Digital Infrastructure providers, to engage in Prohibited Digital Operations. The Parties shall also refrain from knowingly using products or services provided by such entities for the purpose of conducting Prohibited Digital Operations.

The Parties call upon [ICT Company 1], [ICT Company 2], [ICT Company 3] to sign this Agreement. Where ICT companies are signatories to the Agreement, they commit to complying with the provisions of the Agreement.

The Parties call on the following Information and Communications Technology Companies, including social media platforms, telecommunications companies, and cybersecurity companies to [commit to a set of behaviors] [adopt a code of conduct] to be developed in collaboration with [the mediator] [the Monitoring Commission]: [ICT Company 1], [ICT Company 2] [ICT Company 3].

5.0 Constructive Digital Operations

NOTE TO USERS

Ceasefire Agreements often include humanitarian provisions intended to protect and provide aid to refugees, internally displaced persons, humanitarian workers, prisoners of war, and other protected persons and non-combatants. Similar positive provisions can also be included in an Agreement which addresses the Digital components of Armed Conflict, Grey Zone Activity, or Internal Disturbance. These may include connectivity, humanitarian information, defensive cybersecurity, Data protection, Confidence Building Measures, or other functions that Parties wish to provision.

The provisions below are options and should be selected and adapted as appropriate. Parties may therefore include all of the provisions, just a few of them, or none at all.

The Parties agree that the purposes underlying Constructive Digital Operations are to mitigate the effects of the [Armed Conflict] [Grey Zone Activity] [Internal Disturbance] on civilians and affected areas, to mobilize public support for Digital Peace, to encourage Confidence Building Measures by the Parties, and to ensure compliance with the terms of this Agreement.

The Parties agree to the following Constructive Digital Operations:

5.1 Ensuring the continuity of internet connectivity as essential civilian infrastructure. This means that populations are connected to an open and reliable internet, able to access life saving information and emergency services online including humanitarian coordination, emergency medical response, family reunification, and financial services, and that internet users' rights are respected online and offline.

5.2 Publishing online content or media that supports and enables humanitarian services, access to aid, and the facilitation of life-saving information such as the location of safe zones and humanitarian corridors, including from the United Nations, international humanitarian organizations, and civil society organizations.

5.3 Supporting media stories and social media posts that endorse an end to violence and the achievement of peaceful solutions, and spread a message of De-escalation and tolerance.[25]

25 Language inspired by *Terms and Conditions of the Cessation of Hostilities in Yemen*, 2016, "Procedural Measures," clause 6, 3.; *Agreement [Ceasefire between Tripoli and Tarhounah],* Libya, September 21, 2018, 1, point 3, https://pax.peaceAgreements.org/media/documents/ag2216_5cf6e2a0c6f58.pdf.

5.4 Cooperating to maintain or restore interoperable Digital services and infrastructure necessary for civilian life, humanitarian operations, and the implementation of this Agreement. This includes harmonizing technical standards across borders and between Parties, for example by standardizing spectrum, television signals, and other forms of Digital broadcasting.[26]

5.5 Leveraging technologies to enhance and facilitate communication between the Parties, Third Parties, and the public for notification, deconfliction, incident response, and the prevention or resolution of misunderstandings and unintended escalation and to provide officials with essential Data and information to support the implementation of this Agreement.

5.6 Implementing strictly defensive cybersecurity measures to protect systems, networks, and Data from unauthorized access and disruption, and taking action to reverse threats, including notifying the other Party of previously completed deployment operations and removing Malware already implanted in the other Party's networks.

5.7 Using Digital technologies to support early warning, emergency response, humanitarian deconfliction, and the protection of civilians from imminent harm.

5.8 Providing advance notification to the other Party and other Third Parties, for instance software vendors developing the relevant software, where appropriate, of Digital Operations, maintenance, testing, or changes to networks or infrastructure that could reasonably be mistaken for a Prohibited Digital Operation or affect the other Party; and to responsibly disclosing knowledge about vulnerabilities in the other Party's hardware or software.

5.9 Undertaking activities to secure, repair, or restore critical Digital Infrastructure, including networks, Data systems, and essential services as quickly as possible in a way consistent with International Law and that preserves the right to privacy.

5.10 Sharing technical information necessary to prevent, contain, or mitigate Malware, vulnerabilities, cyber incidents, or other Digital threats that could cause harm to civilians or civilian infrastructure.

5.11 Securing, backing up, or restoring Data essential to humanitarian efforts and civilian life, including medical, identity, and other civilian records.

5.12 Using Digital technologies to identify missing or separated persons, restore family links, and facilitate the safe return or reunification of affected populations.

5.13 Undertaking Digital Confidence Building Measures that enhance transparency, reduce misperception, and enable communication.

5.14 Preserving Digital evidence relevant to violations of this Agreement or applicable International Law, subject to appropriate safeguards for privacy and security.

26 Language inspired by Telecommunications Technical Dialogue Agreement Kosovo, Serbia, Yugoslavia (former), https://www.peaceAgreements.org/media/documents/ag2024_5bdc33bf51a9e.pdf.

5.15 Seeking voluntary commitments from ICT Companies to support the Agreement and refrain from facilitating Prohibited Digital Operations, including through parallel Agreements, codes of conduct, or other voluntary mechanisms.

5.16 Taking steps to reduce malicious Cyber Attacks emanating from their territory.

5.17 Seeking commitments from ICT Companies to provide transparent information on the use of their products or services when a Party has breached a provision related to their industry.

5.18 Establishing an Incident Hotline between the Parties so harm can be mitigated through rapid interaction following a potential breach, particularly in the case of an error or misunderstanding. If necessary, the Parties agree to jointly appoint a Third Party intermediary to create a rapid communication mechanism that can resolve misunderstandings or clarify suspected violations before they escalate.

5.19 Other Permissible Digital Operations may be agreed upon by the Parties.

6.0 Digital Monitoring Commission

NOTE TO USERS

This section is modeled after monitoring commissions often included in ceasefire Agreements and includes provisions specific to the uniqueness and complexity of Digital Operations. Ceasefire Agreements sometimes create a commission which can have a range of roles with respect to the ceasefire. These can include: being responsible for information sharing between the parties to the Agreement and with the commission; monitoring the parties' compliance with the terms of the Agreement;[27] *verifying any alleged breaches to the Agreement's provisions;*[28] *reporting on alleged and/or confirmed breaches; and assisting with dispute resolution between the Parties.*[29]

Monitoring commissions can hold the parties accountable for the acts they agree to cease or De-escalate and can act as a deterrent. Sometimes the Parties are unable to agree to implement a monitoring body, whether due to the difficulty of monitoring and verifying breaches, geopolitical factors, and/or resource constraints. While Agreements can be reached without a monitoring body, there would be no entity to hold the parties accountable for breaches to the Agreement. Monitoring can also be conducted by an existing United Nations or regional body mechanism. This section applies to situations of Armed Conflict, Grey Zone Activity, and Internal Disturbance.

If Parties agree to De-escalate Digital Operations instead of ceasing them, the Monitoring Commission can fulfill its roles by evaluating potential breaches by a numerical or percentage threshold for frequency-based, severity-based, or impact-based threshold agreed by the Parties.

The provisions below are options and should be selected and adapted as appropriate. Parties may therefore include all of the provisions, just a few of them, or none at all.

6.1 Composition of the Monitoring Commission

The Parties agree to a Monitoring Commission with the following composition:

6.1.1 The Parties agree that the following [entity] [entities] shall compose the Monitoring Commission: [entity 1]; [entity 2]; [entity 3].

27 See e.g., *Agreement Between The National Government and The Popular Liberation Army,* Colombia, 15 February 1991, https://www.peaceAgreements.org/media/documents/ag1093_5792337e84b76.pdf.

28 See e.g., *Ceasefire Agreement (Bicesse Accords)*, Angola, 31 May 1991, https://www.peaceAgreements.org/media/documents/ag1316_592d9729af74f.pdf.

29 See e.g., *Peace Agreement Between The Government Of Sierra Leone and The Revolutionary United Front Of Sierra Leone*, 7 July 1999, https://www.peaceAgreements.org/media/documents/ag478_55d493ee828e7.pdf.

6.1.2 The Parties agree that [entity] [entities] shall name a [Chairperson] [Committee] to oversee the Monitoring Commission.

6.1.3 The Parties agree that [individual] [individuals] shall serve [as the Chairperson] [on the Committee] to oversee the Monitoring Commission.

6.1.4 The Parties agree that the Monitoring Commission shall be responsible for determining what structure and personnel will best enable it to fulfill its roles.

6.1.5 The Parties understand that the Monitoring Commission may recruit representatives from non-profit organizations, academic institutions, local community leaders, civil society representatives, respected religious leaders, and Information and Communication Technology Companies to contribute to fulfilling the Monitoring Commission's roles. Because local civil society organizations are often the first to detect Internet Shutdowns, document alleged breaches, verify breaches, and engage affected communities, they may be considered core monitoring partners.

6.1.6 The Parties agree to appoint their own representatives in the relevant sectors to respond to and collaborate with the Monitoring Commission.

6.1.7 The Parties agree that the Monitoring Commission must have the ability to understand, read, speak, and write in local, tribal, or Indigenous languages and that resources should be provided to enable it to do so.

6.1.8 The Parties agree that the Monitoring Commission must remain neutral and independent to ensure trust and confidence among different political, ethnic, religious, and sectarian groups.

6.2 Role(s) of the Monitoring Commission

The Parties agree to a Monitoring Commission with the following role(s):

6.2.1 Information Sharing

6.2.1.1 The Parties are committed to sharing relevant, timely, and accurate information with the Monitoring Commission upon its request.

6.2.1.2 The Parties agree that the Monitoring Commission will serve as an intermediary for information sharing between the Parties of evidence of potential and actual breaches to the Agreement.[30]

30 Precedents for voluntary forms of Digital information sharing between States are contained in the 2015 UN GGE norms and the OSCE's 16 ICT Confidence Building Measures. United Nations General Assembly, *Group of Governmental Experts on Developments in the Field of Information and Telecommunications in the Context of*

6.2.1.3 The Parties agree that the Monitoring Commission may create a mechanism to share information regarding alleged or actual breaches of the Agreement with the public.

6.2.1.4 State Parties agree that their national telecommunications and Digital regulatory bodies will share with the Monitoring Commission, or provide upon its request, information regarding Internet Interference from their territories and Internet Interference committed by Proxy Actors.

6.2.1.5 State Parties agree that their national intelligence agencies will share with the Monitoring Commission, or provide upon its request, information regarding Information Threats from their territories and Information Threats committed by Proxy Actors.

6.2.1.6 State Parties agree that their Computer Emergency Response Teams (CERTS) and Computer Security Incident Response Teams (CSIRTS) will share with the Commission, or provide upon its request, technical information regarding potential Cyber Attacks from their territories and Cyber Attacks committed by Proxy Actors, but may avoid attributing Cyber Attacks to a particular Party or Proxy Actor.

6.2.1.7 State Parties agree that representatives from their [CERTS and CSIRTS], [national intelligence agencies], [and national telecommunications and Digital regulatory bodies] shall participate in the Monitoring Commission to better facilitate information sharing.

6.2.1.8 The Parties agree to share information on a timely basis and preserve the privacy of information shared with or by the Monitoring Commission or other Parties.

6.2.1.9 The Parties agree to Digitally track and self-report any potential breaches to the Agreement of their own to the Monitoring Commission.

6.2.1.10 The Parties agree that the Monitoring Commission may [request] [require] that the Parties provide access to the Commission to [certain systems to allow for real-time monitoring] [attested review of logs by an independent Third Party auditor] [signed timestamped forensic artifacts].

International Security: Note by the Secretary-General, U.N. Doc. A/70/174, 22 July 2015, https://Digitallibrary.un.org/record/799853?ln=en&v=pdf; Permanent Council of the Organisation for Security and Cooperation in Europe, *OSCE confidence-building measures (CBMs) to reduce the risks of conflict stemming from the use of information and communication technologies (ICTs),* Decision No. 1202, 10 March 2016, https://www.osce.org/pc/227281.

6.2.2 Monitoring

6.2.2.1 The Parties agree that the Monitoring Commission is responsible for monitoring compliance with this Agreement.[31]

6.2.2.2 The Parties agree that monitoring means observing and recording events or actions related to this Agreement without making formal judgments about the Parties' compliance with this Agreement.

6.2.2.3 The Parties understand that the Monitoring Commission will monitor potential breaches of the Agreement to the extent possible, recognizing that the level of certainty will depend on the type of breach (Internet Interference, Information Threat, or Cyber Attack), the information available about the possible breach, the technical capacity of the monitors, and the good faith of the Parties in providing relevant information.

6.2.2.4 The Parties authorize the Monitoring Commission to establish a mechanism by which Parties and non-parties can safely and anonymously report potential breaches of this Agreement. Non-parties may include civil society organizations, independent experts, international actors, and affected civilians.

6.2.2.5 The Parties agree that the Commission shall be responsible for establishing a process and timeline to notify the Parties of any Party's perceived breaches to the Agreement.

6.2.2.6 The Parties agree that as part of its responsibility to monitor breaches to the Agreement, the Commission may request that Information and Communication Technology Companies provide information designed to help monitor breaches. Such requests may include, but are not limited to, information on: Cyber Attacks using a company's tools or infrastructure; a Party to the Agreement demanding the company enact an Internet Shutdown; a Party's or Proxy Actor's use of a social media or communications platform for Online Incitement to Violence. In the case of Information Threats, the Parties agree that the Monitoring Commission may [require] [request] that a social media or communications platform preserve evidence. The Monitoring Commission may also use Information and Telecommunications Companies products and services to help attribute and verify potential breaches to the Agreement.

31 For example, the Minsk Group (Nagorno-Karabakh Conflict) monitored ceasefire Agreements between Armenia and Azerbaijan and saw early success in the 1990s and early 2000s, but was ultimately dissolved in 2025 amid tensions between its co-chairs (Russia, the United States, and France).

6.2.2.7 The Parties agree that the Monitoring Commission may request the technical support of ICT Companies for the purposes of monitoring the Agreement.

6.2.2.8 The Parties agree that as part of its responsibility to monitor breaches to the Agreement, the Monitoring Commission may request that Third Party States provide evidence of breaches with the Commission.

6.2.2.9 The Parties call upon ICT Companies with evidence of breaches of this Agreement to share that evidence with the Monitoring Commission.

6.2.2.10 The Parties call on Third Party States with evidence of breaches of this Agreement, to share that evidence with the Monitoring Commission.

6.2.2.11 The Parties agree that as part of its responsibility to monitor breaches to the Agreement, the Commission may request cooperation from Third Parties including Third Party States and ICT Companies.

6.2.2.12 The Parties agree to monitor their own compliance with the Agreement and to notify the Monitoring Commission of their own potential breaches to its provisions.

6.2.2.13 The Parties agree that if necessary, the Monitoring Commission may investigate alleged breaches through other means (e.g. interviews, open source investigations).

6.2.2.14 The Parties agree that the Monitoring Commission may monitor the scale of alleged breaches as opposed to or in addition to each individual breach.

6.2.2.15 The Parties agree that the Monitoring Commission may monitor the harms of Prohibited Digital Operations allegedly committed by the Parties as opposed to or in addition to the breaches themselves.

6.2.2.16 The Parties urge the Monitoring Commission to understand local languages for the purpose of monitoring Information Threats to be able to adequately understand and assess the drivers of violence and social tension.

6.2.3. Examining and Verifying

6.2.3.1 The Parties agree that the Monitoring Commission is responsible for examining and verifying whether allegations of breaches reported to or observed by the Monitoring Commission are indeed breaches.[32]

6.2.3.2 The Parties agree that examination and verification means assessing and confirming whether the Parties are complying with this Agreement based on information observed or obtained by the Monitoring Commission or provided to the Monitoring Commission.

6.2.3.3 The Parties understand that to address instances where the Monitoring Commission is unable to verify and attribute potential breaches with absolute certainty, the Monitoring Commission will set percentage confidence thresholds disclosed to the Parties in advance (e.g. 80%) for each potential type of breach (e.g. Distributed Denial of Service) to be attributed to a particular Party. The Parties understand this percentage confidence threshold is likely to vary based on whether the breach concerns Internet Interference, Information Threats, or Cyber Attacks, and based on the incident and information available, and that breaches are only attributable up to that threshold.

6.2.3.4 The Parties agree that the Monitoring Commission may use the products and services of Information and Telecommunications Companies to help attribute and verify potential breaches to the Agreement, where possible.

6.2.3.5 The Parties agree that the Monitoring Commission is responsible, upon verifying a breach, for determining whether a Party, civilian, or other non-Party has legal or other recourse.

6.2.4. Reporting

6.2.4.1 The Parties agree that the Monitoring Commission is responsible for reporting all verified breaches.[33] The Parties understand this may result in a significant lag between an incident and a Commission finding, during which time the Parties shall refrain from publicly accusing one another.

6.2.4.2 The Parties agree that the Monitoring Commission is responsible for initially reporting all potential breaches to the Agreement. The Parties understand that reporting potential breaches may risk damaging a Party's

32 For example, the United Nations Mission in South Sudan (UNMISS) monitored and verified ceasefires through the Ceasefire and Transitional Security Arrangements Monitoring and Verification Mechanism (CTSAMVM).

33 For example, the OSCE Special Monitoring Mission to Ukraine (SMM) reported on ceasefire violations in Ukraine from 2014-2022.

reputation before the Commission has confirmed the allegation, and the Parties shall not escalate their Prohibited Digital Operations before a Commission finding.

6.2.4.3 The Parties agree that reporting means sharing information about [verified] [and potential] breaches of this Agreement with the public – using a structured, impartial, and evidence-based format that balances transparency, neutrality, and the protection of sensitive information. The Parties understand these reports are essential for documenting compliance, informing the public, and preventing escalation.

6.2.4.4 The Monitoring Commission may use Third Party evidence and Information and Communications Technology Company tools to report on [verified] [and potential] breaches to the Agreement.

6.2.4.5 The Parties agree that the Monitoring Commission is responsible for reporting on the harms caused by Prohibited Digital Operations.

6.2.5. Dispute Resolution

6.2.5.1 The Parties agree that the Monitoring Commission will provide technical support and good offices to help resolve technical, operational, and political disputes between the Parties to this Agreement and provide best practices to the Parties.

6.2.5.2 If the Parties have questions about what constitutes a breach to the provisions of this Agreement, they can reach out to the Monitoring Commission for clarification.

6.2.5.3 The Parties agree that the Monitoring Commission will hold consultations on grievances and concerns with the Parties [every six months]. The Parties agree to submit their allegations in advance.

6.2.5.4 The Parties agree that any Party can request that the Monitoring Commission suspend the Agreement if that Party believes another Party has materially breached the Agreement.

6.3 Determining Consequences for Verified Breaches

6.3.1 The Parties agree that the Monitoring Commission is responsible for determining and providing advance notice on the consequences for a Party's breach to the Agreement. For instance, the Commission may require a Party's appearance before guarantor States, communicate a formal statement of censure to the UN Secretary-General, issue a formal warning identifying the breach and requiring corrective action within a specified timeframe, or refer the Party for sanctions consideration.

7.0 Dissemination and Promotion of this Agreement

NOTE TO USERS

Ceasefire Agreements often include provisions requiring the parties to communicate the Agreement among the parties themselves, but also to inform the general public, Third Party actors, and the international community. If the appropriate stakeholders are not aware of the Agreement, there are likely to be violations of the Agreement's terms and a breakdown in trust among the Parties.

These provisions apply to situations of Armed Conflict, Grey Zone Activity, and Internal Disturbance. The provisions below are options and should be selected and adapted as appropriate. Parties may therefore include all of the provisions, just a few of them, or none at all.

7.1 The Parties agree that the announcement of this Agreement shall be disseminated by the Parties through command channels with written orders requiring compliance.

7.2 The Parties agree that the announcement of this Agreement and its provisions will be communicated to the civilian population in clear, accessible, and understandable formats, via print, radio, electronic media, social media, community networks, and all other possible means of communication. Announcements will be made in all relevant languages and translated as needed.[34] Any significant updates to the Agreement made by the Parties must also be communicated.

7.3 The Parties agree to disseminate the announcement of this Agreement to all relevant Third Parties, including Proxy Actors, Third Party States, other States, and other actors who should be aware of the Agreement or may assist in monitoring the terms of the Agreement.

7.4 The Parties agree to communicate to their personnel, Proxy Actors, relevant Third Parties, the civilian population, civil society organizations, and the international community that the failure to comply with this Agreement is likely to result in renewed Prohibited Digital Operations and the breakdown of trust between the Parties and possibly violations of International Law.

34 Language inspired by the *Lusaka Agreement*, Democratic Republic of the Congo, 10 July 1999, S/1999/815, 12, annex A, chap. 1, cl. 1.1, https://peacemaker.un.org/en/node/9615.

7.5 The Parties agree to disseminate the announcement of this Agreement to and engage with Information and Communication Technology Companies and company Boards to promote compliance with and support for this Agreement.

7.6 The Parties shall provide accurate and up to date information concerning this Agreement to the media and shall not interfere with the dissemination of information about this Agreement.[35] The Parties shall take steps to prevent dissemination of distorted or manipulated information about this Agreement.

7.7 The Parties shall give notice of this Agreement to the appropriate international and regional organizations.

35 Language inspired by *The Nuba Mountains Cease-Fire Agreement,* Sudan, 19 January 2002, art. III(9), https://peacemaker.un.org/sites/default/files/document/files/2024/05/sd020119nuba20mountains20cease20fire20Agreement.pdf.

8.0 External Support

NOTE TO USERS

Ceasefire Agreements typically require significant financial means to implement. Financial support can be secured in advance of the Agreement being signed and/or the Agreement can include provisions that call for commitments to provide financial support. Financial commitments also provide geopolitical weight behind the Agreement.

This section applies to Armed Conflict, Grey Zone Activity, and Internal Disturbance. The provisions below are options and should be selected and adapted as appropriate. Parties may therefore include all of the provisions, just a few of them, or none at all.

8.1 The Parties welcome the commitment(s) of [financial supporter 1], [financial supporter 2], [financial supporter 3] to contributing the following monetary amount(s) to help implement this Agreement and to finance the Monitoring Commission.

8.2 The Parties call upon [financial supporter 1], [financial supporter 2], [financial supporter 3] to provide the necessary resources in the following monetary amount(s) to help implement this Agreement and to finance the Monitoring Commission.

8.3 The Parties welcome the commitment(s) of [State 1], [State 2], [State 3] to use their technical capabilities to help monitor certain terms of this Agreement in collaboration with the Monitoring Commission.

8.4 The Parties call upon [State 1], [State 2], [State 3] to provide the necessary technical capabilities to monitor certain terms of this Agreement in collaboration with the Monitoring Commission.

9.0 Definitions

NOTE TO USERS

Ceasefire Agreements often include definitions of terms that are key to successfully implementing the Agreement, so that the Parties have the same understanding of what is prohibited and what is permitted. Misunderstanding or lack of clarity can lead to unintended breaches of the Agreement.

The provisions below are options and should be selected and adapted as appropriate. Parties may therefore include all of the provisions, just a few of them, or none at all.

The Parties have agreed upon the following definitions for this Agreement:

Armed Conflict: A situation involving either (i) the resort to armed force between two or more States, regardless of intensity or duration (known as an International Armed Conflict[36]), or (ii) armed violence between a State and one or more organized non-State armed groups, or between such groups, where the violence reaches a sufficient level of intensity and the non-State armed forces possess a sufficient degree of organization (non-international Armed Conflict).[37]

Artificial Intelligence: A machine-based system that, for explicit or implicit objectives, infers, from the input it receives, how to generate outputs such as predictions, content, recommendations, or decisions that can influence physical or virtual environments. Different AI systems vary in their levels of autonomy and adaptiveness after deployment.[38]

Child: Every human being below the age of eighteen years unless under the law applicable to the Child, majority is attained earlier.[39]

36 *Geneva Convention (I) for the Amelioration of the Condition of the Wounded and Sick in Armed Forces in the Field*, August 12, 1949, 75 U.N.T.S. 31, art. 2 ("Application of the Convention", https://ihl-Databases.icrc.org/en/ihl-treaties/gci-1949/article-2; https://casebook.icrc.org/a_to_z/glossary/international-armed-conflict#:~:text=GENERAL%20DISCLAIMER,;%20Non%2Dinternational%20armed%20conflict.

37 *Geneva Convention (I)*, art. 3 ("Conflicts not of an international character") https://ihl-Databases.icrc.org/en/ihl-treaties/gci-1949/article-3.

https://casebook.icrc.org/a_to_z/glossary/non-international-armed-conflict#:~:text=Under%20Article%203%20common%20to,they%20possess%20organized%20armed%20forces.

38 Organisation for Economic Co-operation and Development (OECD), Explanatory Memorandum on the Updated OECD Definition of an AI System, OECD Artificial Intelligence Papers, no. 8 (Paris: OECD Publishing, 2024), 4, https://doi.org/10.1787/623da898-en.

39 *Convention on the Rights of the Child*, art. 1, https://www.ohchr.org/en/instruments-mechanisms/instruments/convention-rights-Child.

Civilian Objects: All objects that are not Military Objectives.[40] International Humanitarian Law prohibits acts of violence, attacks, and reprisals against Civilian Objects.[41] For the purpose of this Agreement, Civilian Objects include internet and communications infrastructure, such as routers, undersea cables, Internet Service Providers (ISPs), and Data centers – including those used for civilian communications, finance, education, healthcare, and elections.[42] Civilian Objects remain civilian insofar as they do not, by their nature, location, purpose, or use, make an effective contribution to military action and their total or partial destruction, capture, or neutralization, in the circumstances ruling at the time, offers a definite military advantage.[43]

For the purposes of this Agreement, Civilian Objects can also include civilian Data, such as personal medical records and banking information.[44] If Data is not being used to support military operations, such Data should be treated as civilian in nature and protected against operations that would be expected to result in harm, including damage, disruption, or loss of functionality to civilians or civilian systems. See the definition of Military Objective for when a Civilian Object becomes a Military Objective.

Computer Security Incident Response Team (CSIRT): A team that performs, coordinates, and supports the response to security incidents involving sites within a defined constituency.[45]

Confidence Building Measures (CBMs): Actions or mechanisms undertaken by Parties to enhance trust, transparency, and predictability. CBMs can promote stability and help to reduce the risk of misunderstanding and conflict.[46] Examples of CBMs may include

40 *Protocol Additional to the Geneva Conventions of 12 August 1949, and Relating to the Protection of Victims of International Armed Conflicts (Protocol I)*, June 8, 1977, 1125 U.N.T.S. 3, art. 52(1). https://ihl-Databases.icrc.org/en/ihl-treaties/api-1977/article-52.

41 Françoise Bouchet-Saulnier, *The Practical Guide to Humanitarian Law* (Geneva: Médecins Sans Frontières, 2013), "Protected Objects and Property," https://guide-humanitarian-law.org/content/article/3/protected-objects-and-property/#:~:text=Rule%209%20of%20the%20customary,and%20non%2Dinternational%20armed%20conflicts.

42 For further guidance on attacks on internet infrastructure, see ICRC, *Cyber Operations During Armed Conflict: The Principle of Distinction,* 2023, https://www.icrc.org/sites/default/files/wysiwyg/war-and-law/03_distinction-0.pdf.

43 *Protocol Additional to the Geneva Conventions of 12 August 1949, and Relating to the Protection of Victims of International Armed Conflicts (Protocol I)*, June 8, 1977, 1125 U.N.T.S. 3, art. 52(2).

44 ICRC *International Humanitarian Law and the Challenges of Contemporary Armed Conflicts,* 30 September, 2024, 58, https://www.icrc.org/en/publication/international-humanitarian-law-and-challenges-contemporary-armed-conflicts-building.

45 RFC 2350: *Expectations for Computer Security Incident Response*, https://www.rfc-editor.org/info/rfc2350/.

46 United Nations General Assembly, *Report of the Group of Governmental Experts on Advancing Responsible State Behaviour in Cyberspace in the Context of International Security,* U.N. Doc. A/76/135 (July 14, 2021), 18, ¶ 74, https://dig.watch/wp-content/uploads/2022/08/UN-GGE-Report-2021.pdf. In the context of the Digital dimensions of conflict, CBMs may help promote a peaceful ICT environment by facilitating communication and coordination between the Parties, thereby reducing the risk of miscalculation or escalation during or in connection with Cyber Operations.

establishment of points of contact between cyber incident response teams, notification of high-risk cyber activities, or voluntary reporting of potential breaches.

Criminal Organization: A structured group of three or more persons that exists over a period of time and acts together to commit serious crimes for the purpose of obtaining a financial or other material benefit.[47]

Cyber Attack: Cyber Attack is a Cyber Operation that may be reasonably expected to result in the damage or destruction of objects or the injury or death of people.[48] Such operations do not need to have a direct impact on objects or people and can be considered an attack even if the impact is indirect, provided there is a reasonably foreseeable causal link between the operation and the harm caused.[49] For the purposes of this Agreement, a Cyber Attack may include disabling the functionality of the target itself, even if no physical damage is caused.[50] A Cyber Operation aimed at obtaining unauthorized access to information does not, in itself, constitute a Cyber Attack. However, such an operation may constitute a Cyber Attack where it can reasonably be expected to cause, directly or indirectly, injury or death to persons or damage, disabling, or destruction of objects.[51] For the purposes of this Agreement, an attack on Data that results in destruction or death also qualifies as a Cyber Attack.[52, 53]

47 United Nations, 2000, Art. 2(a).

48 Language drawn from Michael N. Schmitt, ed., *Tallinn Manual 2.0 on the International Law Applicable to Cyber Operations* (Cambridge University Press, 2017), Rule 92, https://ilmc.univie.ac.at/fileadmin/user_upload/p_ilmc/Bilder/Bewerbung/Case_2/Michael_N._Schmitt_-_Tallinn_Manual_2.0_on_the_International_Law_Applicable_to_Cyber_Operations-Cambridge_University_Press__2017_.pdf; and ICRC, *International Humanitarian Law and Cyber Operations during Armed Conflicts* (November 2019), https://www.icrc.org/en/document/international-humanitarian-law-and-cyber-operations-during-armed-conflicts.

49 Indirect or reverberating effects may qualify a Cyber Operation as an "attack," including where a Cyber Operation against an electricity network disables hospital power and results in the death of intensive care patients. ICRC, *International Humanitarian Law and Cyber Operations during Armed Conflicts*, November 2019, 7, https://www.icrc.org/sites/default/files/document/file_list/icrc_ihl-and-cyber-operations-during-armed-conflicts.pdf; see *Attack (International Humanitarian Law)*, Cyber Law Toolkit, 27 February 2025, https://cyberlaw.ccdcoe.org/wiki/Attack_(international_humanitarian_law).

50 See ICRC, *International Humanitarian Law and Cyber Operations during Armed Conflicts*, November 2019, 7–8.

51 While Cyber Operations aimed solely at obtaining unauthorized access to information do not, in themselves, constitute "attacks," they may qualify as such where they can reasonably be expected to cause, directly or indirectly, damage, destruction, or injury or death. See ICRC, *Eight Rules for 'Civilian Hackers' during War, and Four Obligations for States to Restrain Them*, 2 August 2024 See also *Cyber Operations During Armed Conflict: The Principle of Distinction,* 2023, https://www.icrc.org/sites/default/files/wysiwyg/war-and-law/03_distinction-0.pdf.

52 See Schmitt, ed., *Tallinn Manual 2.0*, 416, Rule 92(6) ("Whenever an attack on Data foreseeably results in the injury or death of individuals or damage or destruction of physical objects, those individuals or objects constitute the 'object of attack' and the operation therefore qualifies as an attack.").

53 States do not agree on a universal definition of Cyber Attack. Many adopt an effects-based approach, under which a Cyber Operation qualifies as an "attack" when it can be reasonably expected to cause injury or death to persons or damage or destruction to objects. See ICRC, *International Humanitarian Law and the Challenges of Contemporary Armed Conflicts*, 41–42; Schmitt, ed., *Tallinn Manual 2.0*, Rule 92; see also

Cyber Operation: A Cyber Operation refers to any act conducted through or against a computer network or system, including software, hardware, and Data, that is intended to achieve objectives in or through Cyberspace.

Cyberspace: The global, interconnected domain made up of Digital networks, Information and Communication Technologies, and the Data that flows through them, including the infrastructure and systems that enable Digital communication, storage, and computation.[54]

Cyber Mercenaries: Companies or individuals that develop, sell, and/or facilitate offensive cyber capabilities which enable a Party to access the networks, computers, phones, or internet-connected devices of another Party.[55]

Data: Information stored, processed, or transmitted in Digital form, typically using computers or networks, and may include files, databases, communications, metadata, software, and system configurations.

Denial of Service Attack (DoS): A malicious attempt to flood a targeted adversary's network, system, or service with excessive incoming traffic or requests from many different sources to overload and potentially take the network offline, making it unavailable for its intended users. A Distributed Denial of Service Attack (DDoS) is a Denial of Service Attack that uses multiple computers or machines to flood a targeted source.

Deepfake: Synthetic, AI-manipulated, or AI-generated audio, visual, or audiovisual content that has the effect of deceiving the audience into believing that fabricated or altered voices, images, videos, or events are authentic, thereby misleading the audience into thinking that something occurred when it did not or did not occur when it did.

De-escalated Digital Operations: Digital Operations, which can be carried out in Armed Conflict, Grey Zone Activity, and Internal Disturbance, that the Parties agree to De-escalate for the purposes of this Agreement.

Cyber Law Toolkit, *Attack (International Humanitarian Law)*. However, significant disAgreement persists regarding the scope of "damage" required for an operation to qualify as an attack. Some States adopt a narrow interpretation limited to physical damage, while others recognize that Cyber Operations disabling the functionality of a system may constitute attacks even absent physical destruction. See Cyber Law Toolkit, *Attack (International Humanitarian Law).* The ICRC likewise interprets "attack" to include operations that disable computer systems or networks, regardless of whether the effects are kinetic or cyber. See ICRC, *International Humanitarian Law and Cyber Operations during Armed Conflicts.*

54 Language inspired by the Schmitt, ed., *Tallinn Manual 2.0*; and National Institute of Standards and Technology, *CSRC Glossary*, s.v. "Cyberspace," accessed 8 April, 2026, https://csrc.nist.gov/glossary/term/Cyberspace.

55 Language drawn from Cybersecurity Tech Accord, *Principles Limiting the Use of Cyber Mercenaries*, principal co-authors Cisco, Meta, and Microsoft, 2023, https://cybertechaccord.org/uploads/prod/2023/03/Cyber-mercenary-principles_Tech-Accord_032723_FINAL.pdf.

De-escalation: The reduction in the intensity, frequency, scope, and/or harmful effects of Digital Operations, with the aim of reducing tensions, preventing further escalation, limiting harm, or creating conditions for dialogue, stability, or peace. De-escalation may occur in the context of Grey Zone Activity or Internal Disturbance and does not require the complete cessation of Digital Operations. De-escalation may also occur in the context of Armed Conflict, although the term ceasefire is traditionally understood to mean the suspension or cessation of hostilities in the context of an Armed Conflict.

Digital: Electronic systems, devices, or processes that rely on computing technology, software, and Data networks for communication, automation, artificial intelligence, and/or interaction. This can include hardware, software, Data, and Digital services, as well as activities carried out in or through Cyberspace. Digital encompasses all forms of information that are stored, transmitted, processed, or manipulated in binary form (i.e., using 0s and 1s).[56]

Digital Operation: Any activity conducted through, against, or using Digital technologies, Information and Communications Technologies, computer systems or networks, social media and communications platforms, or Data, for the purpose of producing effects in the Digital or physical environment. Digital Operations include, but are not limited to, Cyber Operations, information operations conducted through Digital means, interference with communications or internet services, and the creation, manipulation, dissemination, or amplification of Digital content.[57]

Digital Infrastructure: Hardware, software, networks, and Data systems that enable Digital Operations and Digital communications. This includes physical components, such as servers, cables, routers, and satellites, as well as logical and functional components, such as software, social media and communications platforms, and protocols enabling services and Data exchange.[58]

56 Derived from National Institute of Standards and Technology (NIST), "Digital," *NIST Computer Security Resource Center Glossary*, https://csrc.nist.gov/glossary/term/Digital; NIST, "Information and Communications Technology (ICT)," *NIST Computer Security Resource Center Glossary*, https://csrc.nist.gov/glossary/term/information_and_communications_technology; NIST, "Cyberspace," *NIST Computer Security Resource Center Glossary*, https://csrc.nist.gov/glossary/term/Cyberspace;
UNESCO Institute for Statistics, "Digital Signal," https://uis.unesco.org/en/glossary-term/Digital-signal; UNESCO Institute for Statistics, "Information and Communication Technologies (ICT)," https://uis.unesco.org/en/glossary-term/information-and-communication-technologies-ict.

57 International Committee of the Red Cross, *International Humanitarian Law and the Challenges of Contemporary Armed Conflicts: Building a Culture of Compliance for IHL to Protect Humanity in Today's and Future Conflicts* (Geneva: ICRC, 2024), chap. 5.

58 See European Strategy Forum on Research Infrastructures (ESFRI), "Data, Computing and Digital Research Infrastructures," in *ESFRI Roadmap 2021*, Part 2: Landscape Analysis, Section 1: Thematic Areas. European Commission, 2021, https://roadmap2021.esfri.eu/landscape-analysis/section-1/Data-computing-and-Digital-research-infrastructures/.

Digital Peace: When Parties are not engaged in Prohibited Digital Operations with other Parties to this Agreement.

Digital Surveillance: The monitoring of Digital communications and activities of individuals or groups using technology such as computer software, Internet monitoring tools, and Data analytics.[59]

Disinformation: Deliberately false, misleading, or inaccurate information that has the effect of deceiving and results in serious reputational, financial, legal, psychological, or physical injury to persons or the damage or destruction of Civilian Objects or Military Objectives.[60] This includes information that influences public opinion or obscures the truth.[61] Irony, satire, parody, or humour that seeks to question or ridicule are not forms of Disinformation.[62,63]

Doxxing: The act of exposing private or identifying information on the internet about an individual or group without the individual's or group's consent, usually with malicious intent.[64]

Dual-Use: Objects, facilities, Data, or infrastructure, that can be used for both civilian and military purposes. Dual-Use technologies can be used by civilians for peaceful means while also being adaptable for or supplementary to warfare, intelligence, or weapons development. The Dual-Use framework in this definition applies in the context of Armed Conflict. In Grey Zone Activity and Internal Disturbance, the characterization of objects and their protection is governed by applicable International Law, including International Human Rights Law, rather than the International Humanitarian Law Dual-Use framework

The term Dual-Use may refer to Civilian Objects such as communications infrastructure, energy production facilities, hospitals, or equipment that serve civilian purposes in

59 Understanding perspectives for product design on personal Data privacy in internet of things (IoT): A systematic literature review. *Heliyon*. (2024).

60 There is no universally accepted definition of the term "Disinformation." The UN Secretary General, drawing on earlier definitions from the International Telecommunications Union (ITU) and UNESCO, defines Disinformation as "false information that is disseminated intentionally to cause serious social harm." See UN Secretary-General, *Countering Disinformation for the Promotion and Protection of Human Rights and Fundamental Freedoms*, U.N. Doc. A/77/287 (Aug. 12, 2022), 2, ¶ 3, https://docs.un.org/en/A/77/287. Similarly, the ICRC defined Disinformation as "[i]ntentionally false information that is fabricated and/or disseminated with malicious intent." See ICRC, *Harmful Information: Misinformation, Disinformation and Hate Speech in Armed Conflict and Other Situations of Violence*, 2021, https://www.icrc.org/en/publication/4556-harmful-information-Misinformation-Disinformation-and-hate-speech-armed-conflict.

61 See European Commission, *Tackling Online Disinformation: A European Approach,* COM/2018/236 final, https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=celex:52018DC0236.

62 See UN Secretary-General, *Countering Disinformation*, A/77/287, 2, ¶ 4.

63 Harmful information can involve a mix of both Misinformation and Disinformation. See ICRC, *Addressing Harmful Information in Conflict Settings,* 30 January, 2025, 9.

64 Stovall, J., Wolter, T. "doxing." *Encyclopedia Britannica*, 5 March, 2025. https://www.britannica.com/topic/doxing.

peacetime but can be repurposed as Military Objects for use during Armed Conflicts. Whether an object is Dual-Use depends on whether and how the objects are being used by the military.[65] Under International Humanitarian Law, a Civilian Object may only be treated as a Military Object where it makes an effective contribution to military action and its neutralization offers a definite military advantage; in cases of doubt, it shall be presumed to be civilian.[66]

Electronic Jamming: A form of electronic warfare in which an actor deliberately emits radio-frequency or other electromagnetic energy to overwhelm, confuse, or block the reception of signals used for communication, navigation, sensing, or control.

Grey Zone: The space in which State or non-State actors engage in coercive, hostile, or destabilizing activities that generally remain below the threshold of a "use of force" under Article 2(4) of the UN Charter and an "armed attack" under Article 51. Grey Zone activities do not, by themselves, amount to Armed Conflict under International Humanitarian Law.[67] Grey Zone is not a legal term, nor a term used in International Law.

However, certain Grey Zone activities are still subject to various rules of International Law. International Humanitarian Law does not apply in the Grey Zone, unless activities are sufficiently connected to, or escalate into, an Armed Conflict.[68] Other legal frameworks, including International Human Rights Law and International Criminal Law (excluding war crimes), continue to apply. Use of this term does not imply that activities in the Grey Zone are permissible under international law.

65 See Civilian Objects above; ICRC, *Eight Rules for 'Civilian Hackers' during War, and Four Obligations for States to Restrain Them*.

66 Protocol Additional to the Geneva Conventions of 12 August 1949 (Protocol I), arts. 52(2) and 52(3)

67 The term "Grey Zone" is drawn from a well-established body of strategic and legal literature describing the space between routine statecraft and open Armed Conflict. See Hal Brands, "Paradoxes of the Gray Zone," Foreign Policy Research Institute, 5 February 2016 (defining Grey Zone conflict as "activity that is coercive and aggressive in nature, but that is deliberately designed to remain below the threshold of conventional military conflict and open interstate war"); Lyle J. Morris, Michael J. Mazarr, Jeffrey W. Hornung, Stephanie Pezard, Anika Binnendijk, and Marta Kepe, *Gaining Competitive Advantage in the Gray Zone: Response Options for Coercive Aggression Below the Threshold of Major War* (Santa Monica, CA: RAND Corporation, 2019), 8 (describing the Grey Zone as "an operational space between peace and war, involving coercive actions to change the status quo below a threshold that, in most cases, would prompt a conventional military response").

68 International humanitarian law applies only once the threshold of an Armed Conflict has been met, as defined under the Geneva Conventions and their Additional Protocols; it does not apply merely because activities are hostile, coercive, or destabilizing. *See* Lieber Institute West Point, "Hybrid Threats and Grey Zone Conflict Symposium – Challenges in the Twilight of International Law," November 2024 (explaining that where hostile actors keep activities below the threshold of "protracted armed violence," as per *Prosecutor v. Tadić*, ICTY App. Ch., 15 July 1999, "the defending State will have no choice but to limit itself to law enforcement action to which various restrictions apply under international human rights law"); *see also* Centre for International Governance Innovation, "International Humanitarian Law in the 'Grey Zone' of Space and Cyber" (noting that International Humanitarian Law limits on targeting are often invoked in Grey Zone situations precisely to prevent escalation into Armed Conflict).

Grey Zone operations may be legally ambiguous and are often designed to pursue strategic objectives while not triggering a conventional military response.

Hacking: Obtaining unauthorized access to or manipulating Data, systems, networks, or devices, including through the exploitation of vulnerabilities.

Hack Back: For the purpose of this Agreement, a retaliatory Cyber Operation undertaken against the actual or suspected source of a Cyber Attack.[69]

Hate Speech: Any kind of communication in speech, writing, or behavior, that attacks or uses pejorative or discriminatory language with reference to a person or a group on the basis of who they are, based on their religion, ethnicity, nationality, race, color, descent, gender, age, sexual orientation, disability, political affiliation, or other identity factor.[70] The internet and social media and communications platforms can be used to spread Hate Speech.[71]

Information and Communications Technology Companies: Companies that develop, operate, or provide Digital technologies and infrastructure used to capture, transmit, or display electronic Data or information.[72]

Information Threat: The creation, use, or dissemination of information that is false, misleading, manipulated, or otherwise weaponized in a manner that is intended, or reasonably likely, to cause significant physical, psychological, economic, or social harm to individuals and/or communities or materially undermine societal trust, humanitarian operations, civic institutions, democratic processes, or peace processes through deceptive, manipulative, or otherwise harmful information practices.[73] In this Handbook, Information Threats include Misinformation and Disinformation, Manipulated Media, Inauthentic Behavior, Doxxing, Online Incitement to Violence, Hate Speech, Online

69 Nicholas Hodgkinson, 'Hacking Back', Australian Cyber Law Map, AustLII Communities (12 September 2025), https://austlii.community/foswiki/CyberLaw/AustralianCyberLawMap/HackingBack.

70 United Nations, *UN Strategy and Plan of Action on Hate Speech,* 2019, 2, https://Digitallibrary.un.org/record/3889290?ln=en&v=pdf; see ARTICLE 19, *"'Hate Speech' Explained: A Toolkit,"* 2015, https://www.article19.org/Data/files/medialibrary/38231/'Hate-Speech'-Explained---A-Toolkit-%282015-Edition%29.pdf.

71 For a comprehensive threshold test for assessing when hateful expression rises to the level of incitement, see OHCHR, *Rabat Plan of Action*, A/HRC/22/17/Add.4, 2013, 11, ¶ 29.

72 See OECD (2025), *OECD definitions of the ICT sector, the Content and Media sector, and Information Industries based on ISIC Rev. 5*, OECD Publishing, Paris, https://doi.org/10.1787/b9576889-en.

73 Definition derived from the concept of "harmful information." *See* ICRC, "Why Is the ICRC Concerned by 'Harmful Information' in War?" ICRC Humanitarian Law & Policy Blog, 10 September, 2024, https://blogs.icrc.org/law-and-policy/2024/09/10/why-is-the-icrc-concerned-by-harmful-information-in-war/; Bailey Ulbricht and Joelle Rizk, "How Harmful Information on Social Media Impacts People Affected by Armed Conflict: A Typology of Harms," *International Review of the Red Cross* 106, no. 926 (August 2024): 823–862. *See also* UN General Assembly, *Report of the Special Rapporteur on the Promotion and Protection of the Right to Freedom of Opinion and Expression* (Irene Khan), A/77/288, 12 August 2022, https://www.ohchr.org/en/documents/thematic-reports/a77288-Disinformation-and-freedom-opinion-and-expression-during-armed.

Recruitment, Malicious Online Advertisements, Interference with Humanitarian Information and Data, Harassment of Journalists and Media, and Intimidating Diaspora.

Internet Interference: Deliberate disruptions or restriction of access to internet services or Digital communications.[74] In this Handbook, Internet Interference includes Internet Shutdowns, Throttling, Attacks on Internet Infrastructure, Electronic Jamming, and Third-Party Internet Interference.

Internal Disturbance: Situations of serious internal disorder involving acts of violence, such as riots or isolated or sporadic acts of violence, which do not amount to an Armed Conflict.[75] International Humanitarian Law does not apply here but other forms of International Law, including International Human Rights Law, remain applicable.

Internet Shutdown: An intentional disruption of internet or electronic communications, rendering the internet or electronic communications inaccessible or effectively unusable, for a specific population or within a specific location, often to exert control over the flow of information.[76]

Internet Infrastructure Attacks: Physical or virtual acts directed against the technical infrastructure that enables the functioning, routing, or transmission of the internet or other Digital communications, including radio transmission towers, fiber-optic and undersea cables, satellites, internet exchange points, routing systems, and associated

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74 Definition derived from the UN Special Rapporteur on the Rights to Freedom of Peaceful Assembly and of Association's working definition of Internet Shutdowns. *See* UN Human Rights Council, *Ending Internet Shutdowns: A Path Forward—Report of the Special Rapporteur on the Rights to Freedom of Peaceful Assembly and of Association*, A/HRC/47/24/Add.2, 15 June 2021, para. 7 (defining Internet Shutdowns as "the intentional disruption of internet or electronic communications, rendering them inaccessible or effectively unusable, for a specific population or within a location, often to exert control over the flow of information").

75 ICRC Database, Treaties, States Parties and Commentaries, *Protocol Additional to the Geneva Conventions of 12 August 1949, and relating to the Protection of Victims of Non-International Armed Conflicts (Protocol II)*, 8 June 1977, Article 1(2), https://ihl-Databases.icrc.org/en/ihl-treaties/apii-1977/article-1?activeTab=;

ICRC, "Internal Disturbances and Tensions," in *How Does Law Protect in War? Online Casebook*, accessed April 28, 2026, https://casebook.icrc.org/a_to_z/glossary/internal-disturbances-and-tensions.

76 Definition derived from the #KeepItOn coalition by Access Now and reflected in multiple international reports and Agreements. See Human Rights Council, *Internet Shutdowns: Trends, Causes, Legal Implications and Impacts on a Range of Human Rights*, U.N. Doc. A/HRC/50/55, May 2022, https://docs.un.org/en/a/hrc/50/55; UNHCR, *The Promotion, Protection and Enjoyment of Human Rights on the Internet*, U.N. Doc. A/HRC/32/L.20, 2016, https://documents.un.org/doc/undoc/ltd/g16/131/89/pdf/g1613189.pdf; G7 Digital and Technology Ministers, *Ministerial Declaration*, 30 April, 2023, https://www.Digital.go.jp/assets/contents/node/information/field_ref_resources/efdaf817-4962-442d-8b5d-9fa1215cb56a/f65a20b6/20230430_news_g7_results_00.pdf. Examples of Internet Shutdowns include Syria, Myanmar, Ethiopia, Yemen, and Libya. Access Now, KeepItOn Data, accessed 23 April, 2026, https://public.tableau.com/views/STOP_v2/Dashboard1?:language=en-US&:embed=y&:sid=&:redirect=auth&:embed_code_version=3&:loadOrderID=0&:display_count=y&:origin=viz_share_link.

hardware or software, that are intended or reasonably expected to disrupt, degrade, disable, or manipulate connectivity or communication flows.

Malicious Online Advertisement: Paid or sponsored Digital content distributed through social media and communications platforms to promote messages, influence perceptions, or shape behavior. Malicious Online Advertisements may be used to distribute or amplify harmful information.

Malware / Malicious Software: Any software or code intentionally designed to or reasonably expected to disrupt, damage, degrade, or gain unauthorized access to a computer system, device, server Data, or network.[77] Malware includes, but is not limited to, viruses, worms, Trojan horses, ransomware, Spyware, adware, and other forms of malicious code.

Military Objective: An object is considered a Military Objective under International Humanitarian Law if, by its nature, location, purpose, or use, it makes an effective contribution to military action, and its total or partial destruction, capture, or neutralization offers a definite military advantage.[78] For further clarification, see the definitions of Civilian Object and Dual-Use.

Misinformation: Verifiably false, inaccurate, or misleading information that is shared, disseminated, or amplified without the intention to deceive, manipulate, or cause harm.[79]

Online Incitement to Violence: Any Digital communication, including on but not limited to social media and communications platforms, websites, videos, and forums that is intended to, and reasonably likely to, incite discrimination, hostility, or violence against individuals or groups of people. Online speech is assessed using the Rabat Plan of Action six-part threshold test (context, speaker, intent, content, extent, likelihood of harm) to determine whether it qualifies as incitement to violence.[80]

Online Recruitment: The use of social media and communications platforms by Parties to enlist, recruit, or solicit individuals for participation in the Armed Conflict, Grey Zone Activity, or Internal Disturbance.

77 Adapted from National Institute of Standards and Technology, *CSRC Glossary*, s.v. "Malware," accessed April 13, 2026, https://csrc.nist.gov/glossary/term/Malware.

78 Adapted from *Protocol Additional to the Geneva Conventions of 12 August 1949, and Relating to the Protection of Victims of International Armed Conflicts (Protocol I)*, 8 June 1977, 1125 U.N.T.S. 3, art. 52, https://ihl-Databases.icrc.org/en/ihl-treaties/api-1977/article-52.

79 OECD Legal Instruments, Recommendation of the Council on Information Integrity, https://legalinstruments.oecd.org/en/instruments/OECD-LEGAL-0505?trk=article-ssr-frontend-pulse_little-text-block&utm_source=chatgpt.com.

80 OHCHR, *Rabat Plan of Action; ICCPR,* art. 20(2).

Phishing: A form of Cyber Operation whereby the attacker uses deceptive communications, often emails, websites, or messages, to trick individuals to disclose confidential information, provide access to credentials, or install Malicious Software.[81]

Prohibited Digital Operations: Digital Operations, which can be carried out in Armed Conflict, Grey Zone Activity, and Internal Disturbance, that the Parties agree to cease for the purposes of this Agreement.

Proxy Actors: Third Party State, non-State, or quasi-State groups or individuals that are supported – politically, financially, and/or militarily – by a Party to advance their strategic objectives, often allowing the Proxy Actor to influence the conflict without becoming a Party.[82] The conduct of Proxy Actors may be attributable to a State in accordance with applicable rules of International Law.[83]

Public Core: Critical, foundational infrastructure that enables the global internet to function reliably and securely, including packet routing and forwarding, naming and numbering systems, cryptographic mechanisms of security and identity, and physical transmission media.[84]

Spoofing: The falsification or impersonation of a digital identity, source, address, communication, or other identifying information to deceive a person or digital system into believing that the information or communication originates from a legitimate or different source.[85]

Spyware: Malicious Software designed to covertly access or compromise a person's or institution's device in order to monitor, collect, or intercept Data, communications, or metadata relating to that person, institution, or their networks, without their knowledge or consent.

81 Schmitt, ed., *Tallinn Manual 2.0.*

82 See ICRC, *International Humanitarian Law and the Challenges of Contemporary Armed Conflicts,* 30 September, 2024, 67, https://www.icrc.org/en/publication/international-humanitarian-law-and-challenges-contemporary-armed-conflicts-building (describing proxy warfare as armed hostilities involving states or non-state actors supported, directly or indirectly, politically, materially, financially, militarily, or otherwise, by other actors to advance their strategic interests).

83 See International Court of Justice, *Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States)*, Judgment, June 27, 1986, I.C.J. Reports 1986, 54, ¶ 115; ICJ, *Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v. Serbia and Montenegro)*, Judgment, February 26, 2007, I.C.J. Reports 2007, 43, ¶¶ 398–406 (holding that the acts of non-state actors may be attributed to a state where the state exercises sufficient control over their conduct, and reaffirming the "effective control" test).

84 See Global Commission on the Stability of Cyberspace, *Definition of the Public Core, to Which the Norm Applies*, 2018, https://cyberstability.org/public-core/; Global Commission on the Stability of Cyberspace, *The Paris Call for Trust and Security in Cyberspace*, 2018, principle 2, https://pariscall.international/en/.

85 National Institute of Standards and Technology, "Spoofing," Computer Security Resource Center Glossary, citing Committee on National Security Systems Glossary, CNSSI No. 4009 (2022), https://csrc.nist.gov/glossary/term/spoofing.

Surveillance: Monitoring, collection, interception, retention, or analysis of Data or communications relating to a person, group, or system, by Digital or electronic means, whether targeted or indiscriminate, for purposes of intelligence gathering, security, control, influence, or operational advantage.[86]

Technology-facilitated Gender Based Violence: Any act, that is committed, assisted, aggravated, or amplified by the use of ICTs or other digital tools, that results in or is likely to result in physical, sexual, psychological, social, political or economic harm, or other infringements of rights and freedoms.[87]

Terrorism: The use or threatened use of violence, or other acts dangerous to human life, intended to intimidate or coerce a civilian population or to influence government policy or conduct.[88]

Terrorist Organization: An organization that engages in, or has the capability and intent to engage in, such terrorist activity.[89]

Third Party: Any State, organization, company, Proxy Actor, or other entity that is not a principal Party to the Armed Conflict, Grey Zone Activity, or Internal Disturbance but intervenes, sometimes indirectly, to influence its outcome by supporting, assisting, participating in, enabling, or otherwise becoming involved with a Party. Third Parties can provide resources like arms, funding, training, personnel, or other Digital capabilities.[90]

Throttling: Intentional technical measures used to reduce the speed, capacity, or reliability of Digital communications networks or services, thereby impairing users' ability to access or transmit information.

86 OHCHR, *The Right to Privacy in the Digital Age,* U.N. Doc. A/HRC/27/37, 30 June 2014, and subsequent reports; National Institute of Standards and Technology, Glossary of Key Information Security Terms, NIST Interagency Report 7298, rev. 3, 2019, https://doi.org/10.6028/NIST.IR.7298r3.

87 UN Women, *Technology-Facilitated Gender-Based Violence: Developing a Shared Research Agenda* (New York: UN Women, 2024), 4.

88 18 U.S.C. § 2331.

89 18 U.S.C. § 2331.

90 International Law Commission, *Articles on Responsibility of States for Internationally Wrongful Acts,* 2001, arts. 16–18; Geneva Convention (I), 12 August 1949, 75 U.N.T.S. 31, common art. 1.

10.0 Signatures

NOTE TO USERS

Ceasefire Agreements usually include the signatures of representatives of the parties agreeing to the provisions of the Agreement. It is often helpful to include the signatures of Third Party witnesses and other Third Parties whose compliance and support may be necessary to ensure the Agreement's effective implementation. Third Party signatures may include Information and Communication Technology Companies. Parties may also commit to being responsible for the actions of certain Proxy Actors.

Parties to this Agreement understand that Party representative signatures are required to bring the Agreement into force. Signatories must have the authority to conclude such an Agreement on behalf of the Party.

Third Parties serving as [mediators] [witnesses] [assisting in the implementation and monitoring of the Agreement] shall include their signatures to ensure compliance with this Agreement.

Signatures

Done at [location of signing] on [day, month, year]

For [designate Party A] [name of signatory A1] [name of signatory A2]

For [designate Party B] [name of signatory B1] [name of signatory B2]

For [designate Party C] [name of signatory C1] [name of signatory C2]

For [designate Third Party] [name of Third Party signatory 1] [name of Third Party signatory 2]

[Party A] agrees that it is responsible for the actions of [Proxy Actor] [name of Proxy Actor].

11.0 Annex on Commitment to International Law

NOTE TO USERS

Ceasefire Agreements often include a commitment to International Law in the preamble, and at times in the provisions of the Agreement itself. These provisions remind Parties of their commitments to International Law and affirm that the Parties are subject to applicable International Law regardless of their signing of an Agreement.

It should be noted that the Handbook draws on different bodies of International Law, including International Humanitarian Law, International Human Rights Law, and International Criminal Law, as well as the principles of sovereignty and non-intervention. Where relevant, the Handbook identifies the applicable legal basis or normative character of particular provisions.

Please note when using these provisions that International Humanitarian Law applies only during Armed Conflict[91] *(both international Armed Conflict and non-international Armed Conflict); War Crimes can only be committed during Armed Conflicts,*[92] *but the international crimes of Genocide, Crimes Against Humanity,*[93] *and Crimes of Aggression*[94] *can also be committed in the Grey Zone and in times of Internal Disturbance; and International Human Rights Law applies at all times.*[95]

This Annex contains a range of provisions, some of which have been agreed upon by all States either in United Nations mechanisms or other international fora, while others reflect areas of convergence but have not achieved universal Agreement. Such provisions may reflect developing academic opinion, emerging state practice, or evolving interpretations, rather than rules that currently enjoy universal acceptance under International Law. The Annex also includes provisions specific to this Agreement that may not reflect broader international consensus but which the Parties may nevertheless agree to adopt.

The provisions below are options and should be selected and adapted as appropriate. Parties may therefore include all of the provisions, just a few of them, or none at all.

91 Office of the United Nations High Commissioner for Human Rights, *International Legal Protection of Human Rights in Armed Conflict*, 2011, 7–8, (noting that International Humanitarian Law "applies only in Armed Conflict," while human rights law applies at all times).

92 Rome Statute of the International Criminal Court, 17 July, 1998, 2187 U.N.T.S. 90, arts. 6–8 (war crimes must be committed in the context of and associated with an Armed Conflict).

93 Rome Statute, arts. 6–7 (genocide and crimes against humanity contain no Armed Conflict requirement). See also Convention on the Prevention and Punishment of the Crime of Genocide, 9 December 1948, 78 U.N.T.S. 277.

94 Rome Statute, art. 8 bis (as amended by the Kampala amendments, RC/Res.6, 11 June 2010), requires a manifest violation of the UN Charter but does not require an Armed Conflict as a precondition.

95 International Covenant on Civil and Political Rights, 16 December 1966, 999 U.N.T.S. 171.

The Parties agree to full compliance with International Law, including International Humanitarian Law, International Criminal Law, and International Human Rights Law.

The Parties agree that the same rights people have offline must also be protected online. The Parties shall respect and ensure the rights of individuals including their rights to freedom of expression, access to information, and privacy.[96]

The Parties agree to uphold these obligations unconditionally, regardless of whether other Parties do so.

International Law

The Parties agree that the prohibition on the threat or use of force under UN Charter Article 2(4) applies to Digital Operations.[97, 98] Digital Operations that cause death or injury to persons, or physical damage to or destruction of objects, ordinarily constitute a use of force.[99, 100] Digital Operations that do not result in such physical effects may still constitute

96 Human Rights Council, U.N. Doc. A/HRC/20/L.13 (29 June 2012) (affirming that the same rights held offline must be protected online); Human Rights Council, U.N. Doc. A/HRC/32/L.20 (27 June 2016) (condemning measures to intentionally prevent or disrupt online access to information).

97 The ICJ confirmed that Articles 2(4) and 51 "do not refer to specific weapons" and "apply to any use of force, regardless of the weapons employed." *Legality of the Threat or Use of Nuclear Weapons*, Advisory Opinion, July 8, 1996, *I.C.J. Reports* 1996, 226, 244, ¶ 39, https://www.icj-cij.org/case/95/advisory-opinions. This weapon-agnostic principle thus confirms that Digital Operations may constitute uses of force. The UN General Assembly has affirmed that international law, including the UN Charter, applies to States' use of ICTs. U.N. Doc. A/RES/68/243, 27 December 2013. The 2021 GGE further recognized that ICTs may be employed in a manner that constitutes a threat or use of force. U.N. Doc. A/76/135, 14 July 2021. Whether *particular* Digital Operations cross the threshold, however, remains unsettled; see footnotes below.

98 Article 2(4) prohibits "the threat or use of force against the territorial integrity or political independence of any state, or in any other manner inconsistent with the Purposes of the United Nations." UN Charter art. 2(4). The provision covers both the *threat* of force and its *use*; a Digital Operation that credibly signals a threat may therefore independently engage Article 2(4) without any force actually being applied. The UN Charter does not define "use of force," and no universally accepted definition exists under international law. U.N. Doc. A/75/816 (18 March 2021), p. 20.

99 It is broadly accepted that a Digital Operation causing death or injury to persons, or physical damage to or destruction of objects, will in most circumstances constitute a use of force under Article 2(4), regardless of the means by which those consequences were produced. Michael N. Schmitt, ed., *Tallinn Manual 2.0 on the International Law Applicable to Cyber Operations* (Cambridge University Press, 2017), Rule 69 ("A Cyber Operation constitutes a use of force when its scale and effects are comparable to non-Cyber Operations rising to the level of a use of force"). This approach is reflected in the national positions of numerous States. *Use of Force*, Cyber Law Toolkit, https://cyberlaw.ccdcoe.org/wiki/Use_of_force.

100 The UN Charter does not define "use of force," and no authoritative or universally accepted definition exists under international law. U.N. Doc. A/75/816 (18 March 2021), p. 20. Given the absence of a universal standard, many States and scholars have approached the question by focusing on the *effects* of a given operation rather than the means by which it is carried out. The ICJ in *Nicaragua* applied "scale and effects" as the criterion for determining whether particular conduct rises to the level of an armed attack under Article 51, characterizing armed attacks as "the most grave form of the use of force" and distinguishing armed attacks from lesser uses of force falling within Article 2(4)'s prohibition. *Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States)*, Merits, Judgment, *I.C.J. Reports* 1986, 27 June 1986, 14. Although

a use of force, threat of the use of force, or a prohibited intervention under International Law depending on their scale and effects.

The Parties agree that International Law applies to Cyberspace and undertake to be bound by its obligations, including the principles of sovereignty, non-intervention, and the peaceful settlement of disputes.[101]

The Parties agree to implement the 11 voluntary norms that constitute responsible state behavior in Cyberspace.[102] Given they are voluntary in nature, where Parties choose to incorporate them into an Agreement, they should specify whether, and to what extent, the norms constitute commitments between the Parties for the purposes of the Agreement.

The Parties agree that when determining whether Digital Operations constitute an unlawful use of force, they will be guided by the customary international law prohibition on the use of force, as reflected in UN Charter Article 2(4),[103] and will assess whether the scale and effects of the Digital Operation are comparable to those of a non-Digital

Nicaragua's scale and effects language was articulated in the Article 51 context, it has been widely extended to the lower Article 2(4) threshold by analogy: if scale and effects delimit the upper boundary between a use of force and an armed attack, they should equally govern where conduct crosses the lower boundary from lawful activity into prohibited force.

101 See United Nations General Assembly, *Developments in the Field of Information and Telecommunications in the Context of International Security*, U.N. Doc. A/RES/68/243, 27 December 2013, (adopting the 2012–2013 Report of the Group of Governmental Experts affirming that international law applies to Cyberspace); UN General Assembly, Report of the Group of Governmental Experts on Advancing Responsible State Behaviour in Cyberspace in the Context of International Security, U.N. Doc. A/76/135 (14 July 2021), (affirming that international law, sovereignty, and the UN Charter apply in Cyberspace).

102 The 2015 UN Group of Governmental Experts identified 11 voluntary norms of responsible State behavior in Cyberspace: (a) States should cooperate to enhance ICT security and prevent harmful practices; (b) States should consider all relevant information when assessing ICT incidents; (c) States should not knowingly allow their territory to be used for internationally wrongful ICT acts; (d) States should cooperate to address criminal and terrorist ICT use; (e) States should respect human rights, including freedom of expression and privacy, in the use of ICTs; (f) States should not conduct or support ICT activity that intentionally damages critical infrastructure or disrupts essential public services; (g) States should take measures to protect their critical infrastructure from ICT threats; (h) States should assist other States in responding to malicious ICT activity affecting critical infrastructure; (i) States should promote supply chain integrity and prevent the proliferation of malicious ICT tools; (j) States should encourage responsible reporting of ICT vulnerabilities and available remedies to such vulnerabilities; and (k) States should not target or misuse computer emergency response teams. See United Nations General Assembly, *Group of Governmental Experts on Developments in the Field of Information and Telecommunications in the Context of International Security: Note by the Secretary-General*, U.N. Doc. A/70/174, 22 July 2015, 7–8, ¶ 13, https://Digitallibrary.un.org/record/799853?ln=en&v=pdf.

103 The prohibition on the use of force constitutes both a treaty obligation under Article 2(4) of the UN Charter and a norm of customary international law, the two being generally understood as coextensive in content. In *Nicaragua*, the ICJ applied the customary law prohibition rather than Article 2(4) directly, having been precluded from treaty jurisdiction by the United States' multilateral treaty reservation, while expressly recognising that the customary rule ran parallel to the Charter provision: *Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States)*, Merits, Judgment, 27 June 1986, I.C.J. Reports 1986, 14, para. 178.

Operation that would constitute a use of force,[104] taking into account all relevant circumstances.[105] The Parties acknowledge that the scale-and-effects approach is not universally accepted and may adopt an alternative formulation by mutual Agreement.

The Parties agree that the right of self-defense under UN Charter Article 51 may be invoked in response to Digital Operations that constitute an armed attack. Whether a Digital Operation constitutes an armed attack is assessed on a case-by-case basis with reference to its scale and effects, including whether those effects are comparable to a kinetic armed attack (e.g., severe suffering, death, significant physical damage, or destruction).[106]

The Parties agree that the conduct of non-State actors, including Proxy Actors and Third Parties to the conflict, engaged in Digital Operations or other acts in connection with an

104 No authoritative or universally accepted definition of "use of force" exists under international law, and the UN Charter does not define the term. U.N. Doc. A/75/816 (18 March 2021), p. 20. In the absence of a universal standard, the scale and effects criterion, drawn by analogy from the ICJ's reasoning in *Nicaragua*, para. 195, has emerged as the prevailing approach among States and scholars. The Tallinn Manual 2.0 applies it directly: "A Cyber Operation constitutes a use of force when its scale and effects are comparable to non-Cyber Operations rising to the level of a use of force." Rule 69. Although *Nicaragua*'s scale and effects language was articulated in the Article 51 armed attack context, it has been widely extended to the lower Article 2(4) threshold by analogy: if scale and effects delimit the upper boundary between a use of force and an armed attack, they should equally govern where conduct crosses the lower boundary from lawful activity into prohibited force. Schmitt, "International Law in Cyberspace: The Koh Speech and Tallinn Manual Juxtaposed," *Harvard International Law Journal Online* 54 (2012), p. 13. This approach is reflected in numerous State positions. Cyber Law Toolkit, *Use of Force*, https://cyberlaw.ccdcoe.org/wiki/Use_of_force; U.N. Doc. A/76/136 (2021). The OEWG Final Report stopped short of endorsing scale and effects as the applicable standard, acknowledging divergent State views on the use-of-force threshold and illustrating that the position represents a strong but not yet settled trend in State practice rather than established customary international law. U.N. Doc. A/75/816 (18 March 2021), p. 20.

105 "Scale and effects" does not operate as a binary test but requires holistic evaluation of the Digital Operation in light of all circumstances. The Tallinn Manual 2.0, Rule 69 commentary, identifies eight non-exclusive factors relevant to that assessment: (1) *severity*, which has consistently been identified as the foremost consideration, particularly where physical damage, destruction, injury, or death results; (2) *immediacy* of consequences; (3) *directness* of the causal link between the operation and its effects; (4) *invasiveness*; (5) *measurability of effects*; (6) *military character* of the operation; (7) *degree of State involvement*; and (8) *presumptive legality* under international law. Additional contextual considerations, including the prevailing political environment, whether the operation portends imminent kinetic action, the identity and prior conduct of the attacker, and the nature of the target, may further bear on the assessment.

106 See *Legality of the Threat or Use of Nuclear Weapons*, Advisory Opinion, July 8, 1996, *I.C.J. Reports* 1996, 226, 244, ¶ 39, https://www.icj-cij.org/case/95/advisory-opinions (providing that Articles 2(4) and 51 "do not refer to specific weapons" and "apply to any use of force, regardless of the weapons employed").

Armed Conflict is attributable to a State where that State directed or exercised effective control over the specific conduct in question.[107, 108, 109]

The Parties recognize that Digital Operations may amount to or contribute to the existence of an Armed Conflict where the applicable legal thresholds are met.[110]

The Parties agree that civilians who engage in Digital Operations supporting a Party to the Armed Conflict may lose protection from attack for such time as their conduct amounts to direct participation in hostilities.[111]

The Parties agree that the principles of sovereignty and non-intervention can be breached if Digital Operations are coercive and intrude on a State's domestic jurisdiction, including command over elections, public order, or essential governmental functions.[112]

The Parties agree that when determining whether Digital Operations constitute a prohibited intervention in a state's internal affairs, they will be guided by the International Court of Justice decision, *Nicaragua v. United States* (1986).[113]

107 The conduct of non-State actors is attributable to a State for purposes of State responsibility only where that State directed or exercised effective control over the specific conduct constituting the internationally wrongful act; control over the group or organisation generally is insufficient. Nicaragua v. United States, I.C.J. Reports 1986, 14, paras. 109, 115. This standard was reaffirmed in Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Bosnia and Herzegovina v. Serbia and Montenegro), Judgment, 26 February 2007, I.C.J. Reports 2007, 43, paras. 398–406, and codified in Article 8 of the ILC's Articles on the Responsibility of States for Internationally Wrongful Acts (ARSIWA), U.N. Doc. A/56/10 (2001).

108 The requirement that effective control extends to the specific conduct in question, rather than the non-State actor generally, has significant implications in the Digital context, where a State may provide general technical assistance, infrastructure, or sanctuary to a group conducting Digital Operations without directing any particular operation. In such circumstances, the conduct of the group will not be attributable to the State under ARSIWA art. 8, though the State may incur separate responsibility under ARSIWA art. 16 for aiding or assisting an internationally wrongful act where it does so with knowledge of the circumstances: ILC Commentary to ARSIWA art. 16; Tallinn Manual 2.0, Rule 17.

109 The ICTY Appeals Chamber in Prosecutor v. Tadić articulated a lower overall control threshold for the distinct purpose of classifying an Armed Conflict as international in character. Case No. IT-94-1-A, Judgment, 15 July 1999, para. 131. The ICJ in Bosnia Genocide expressly declined to apply this standard for purposes of State responsibility, confining its application to conflict classification and reaffirming effective control as the sole applicable attribution standard. Bosnia Genocide, paras. 404–406.

110 ICRC, *International Humanitarian Law and the Challenges of Contemporary Armed Conflicts,* 2024 https://www.icrc.org/en/publication/international-humanitarian-law-and-challenges-contemporary-armed-conflicts-building, 43–50; Tallinn Manual 2.0, Rules 82–83.

111 Additional Protocol I, art. 51(3) (revolving-door principle establishes that civilian protection is lost only during direct participation, not permanently).

112 Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States) *Merits, Judgment*, 1986 I.C.J. 14, paras. 202–205.

113 *Id.*

International Humanitarian Law

The Parties agree that International Humanitarian Law applies fully to Digital Operations conducted during, in connection with, or in support of an Armed Conflict.[114]

The Parties agree that International Humanitarian Law governs all means and methods of warfare, regardless of technological form.[115]

The Parties agree that the International Humanitarian Law principles of distinction, proportionality, precautions in attack, humanity, military necessity, and the prohibition on unnecessary suffering constrain Digital Operations in Armed Conflict.[116]

The Parties agree that International Humanitarian Law applies to Cyberspace.[117]

The Parties agree that Cyber Attacks constitute "attacks" under International Humanitarian Law when they are reasonably expected to cause injury or death to persons, or physical damage to or destruction of objects, including the loss of functionality of critical systems.

The Parties agree that the requirement to distinguish between Civilian Objects and Military Objectives in International Humanitarian Law applies to Digital Infrastructure including networks, Data, software, servers, and cloud systems.[118]

The Parties recognize that Data like medical records, population registries, and humanitarian beneficiary information warrant protection under International Humanitarian Law, in particular where it is essential to civilian life.

The Parties agree that targeting hospitals and humanitarian relief organizations with Digital Operations is prohibited under International Humanitarian Law.[119]

114 U.N. Doc. A/76/135, ¶ 71(c) ('International humanitarian law applies to the use of ICTs by States in the context of Armed Conflict').

115 Additional Protocol I (API), art. 36 (States must review new means and methods of warfare to ensure compliance with International Humanitarian Law). Geneva Conventions I–IV, Common Arts. 1 (obligation to respect and ensure respect for International Humanitarian Law "in all circumstances").

116 Customary International Humanitarian Law (Jean-Marie Henckaerts and Louise Doswald-Beck eds., ICRC/Cambridge University Press, 2005), Rules 1 (distinction), 14 (proportionality), 15–24 (precautions), 70 (unnecessary suffering). See also API, arts. 48, 51–57.

117 UNGA *Report of the Group of Governmental Experts on Advancing Responsible State Behaviour in Cyberspace in the Context of International Security*, U.N. Doc. A/76/135, 14 July 2021, 17.

118 API, art. 48 (obligation to distinguish at all times between civilian population and combatants, and between civilian objects and Military Objectives). API, art. 52(2) (defining Military Objectives as objects that by nature, location, purpose, or use make an effective contribution to military action and whose destruction offers a definite military advantage). Tallinn Manual 2.0, Rule 100 ('Cyber infrastructure is a civilian object unless it constitutes a Military Objective').

119 Language inspired by International Committee of the Red Cross (ICRC), *Eight Rules for 'Civilian Hackers' during War, and Four Obligations for States to Restrain Them*, October 4, 2023, Rule 4. https://www.icrc.org/en/article/8-rules-civilian-hackers-during-war-and-4-obligations-states-restrain-them. API, arts. 12–13

The Parties agree that attacks on the following infrastructure are prohibited under International Humanitarian Law: drinking water installations and irrigation systems;[120] dams and other objects that can release dangerous forces;[121] and electrical generating systems and other nuclear infrastructure.

The Parties agree that International Humanitarian Law applies to Cyber Operations that affect the Public Core of the internet and agree to refrain from Cyber Attacks that disrupt its functionality.[122]

International Criminal Law

The Parties agree that International Criminal Law, including the Rome Statute, applies to conduct involving Digital Operations where such conduct meets the elements of crimes under applicable law.

The Parties agree that International Criminal Law, including the Rome Statute, applies to conduct involving Cyber Attacks.

International Human Rights Law

The Parties affirm that International Human Rights Law applies at all times,[123] including during peacetime as well as Armed Conflict, Grey Zone activities, and Internal Disturbances.

The Parties agree that Internet Shutdowns and the targeted suspension of social media and communications platforms, including during protests and elections, are inconsistent with International Human Rights Law, including the rights to freedom of expression, access to information, assembly, and association.

The Parties further agree that Surveillance measures, including Spyware, monitoring systems, Data interception, and mass Data collection, must comply with the human rights principles of legality, necessity, proportionality, and effective oversight to be lawful.[124]

(protection of medical units); Geneva Convention IV, arts. 18–19 (civilian hospitals may not be attacked); API, art. 51(3) (civilian population protected against attack).

120 API, art. 54(2) ('It is prohibited to attack, destroy, remove or render useless objects indispensable to the survival of the civilian population').

121 API, art. 56 (special protection for dams, dykes, and nuclear electrical generating stations; attacks prohibited when they would release dangerous forces causing severe losses among the civilian population, even where Military Objectives).

122 Protocol Additional to the Geneva Conventions of 12 August 1949 (Protocol I), arts. 48, 51, 52, 54, 57; ICRC, *Avoiding Civilian Harm from Military Cyber Operations during Armed Conflicts* (2021); ICRC, *International Humanitarian Law and the Challenges of Contemporary Armed Conflicts* (2023); Tallinn Manual 2.0, rules 92–95.

123 ICCPR, art. 2(1) (obligation to respect and ensure rights to all individuals within territory and subject to jurisdiction). OHCHR, International Legal Protection of Human Rights in Armed Conflict (2011), pp. 7–8. ICCPR, art. 4 (some rights (e.g., right to life, freedom from torture) cannot be derogated even in public emergencies).

124 International Covenant on Civil and Political Rights (1966), arts. 17, 19, 21, 22; Human Rights Council, U.N. Docs. A/HRC/20/L.13 (2012) and A/HRC/32/L.20 (2016); Human Rights Committee, General Comments No. 16 (1988), No. 34 (2011), and No. 37 (2020); UN General Assembly, U.N. Docs. A/RES/68/167 (2013) and A/RES/73/179 (2018); Special Rapporteur on Freedom of Expression, U.N. Doc. A/HRC/23/40 (2013).

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